CHAPTER 52

MANUAL OF REQUIREMENTS

FOR CHILD CARE CENTERS

STATE OF NEW JERSEY
DEPARTMENT OF CHILDREN AND FAMILIES

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N.J.A.C. 3A:52
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SUBCHAPTER 1. GENERAL PROVISIONS

3A:52-1.1 Legal authority

(a) This chapter is promulgated pursuant to the Child Care Center Licensing Act, N.J.S.A. 30:5B-1 et seq.

(b) Under the laws specified in (a) above, the Department of Children and Families is authorized to:

1. License certain public and private child care centers that are maintained for the care, development**,** or supervision of six or more children under 13 years of age for less than 24 hours a day;

2. Inspect and examine the physical plant or facilities, including, but not limited to, storage areas and additional floor levels, and program of a child care center without delay or an escort, and inspect all documents, records, files, or other data maintained pursuant to the above-referenced law during the center's normal operating hours and without prior notice; and

3. Request the appropriate State and local fire, health and building officials to conduct examinations and inspections to determine a center's compliance with State and local ordinances, codes and regulations. The inspections shall be conducted and the results reported to the Department within 60 days after the request.

(c) Under the laws specified in (a) above, the Department of Children and Families is authorized to issue a Certificate of Life/Safety Approval to a center that:

1. Operates on a seasonal or short-term basis for eight weeks or less and does not offer a continuous program that extends across the three-year period of licensure; or

2. Was operating on or before May 16, 1984 and was exempt from the licensing provisions because it was operated by an aid society of a properly organized and accredited church.

(d) Centers specified in (c)1 and 2 above are required to comply with the physical facility; life/safety; administration and control of medication; environmental sanitation; supervision, minimum staffing, and discipline requirements; and communicable disease reporting provisions of this chapter. Centers with Certificates of Life/Safety Approval may secure regular licenses on a voluntary basis, as long as they comply with all provisions of this chapter.

(e) To be eligible for a license, a center shall demonstrate to the satisfaction of the Department of Children and Families, or the duly authorized agency, that the center complies with all applicable provisions of this chapter.

(f) All applicable requirements shall be met by all child care centers, unless the rules are specified as "for early childhood programs" or "for school-age child care programs."

(g) Responsibility for ensuring that centers comply with the provisions of the laws cited in (a) above and with provisions of this chapter is hereby delegated by the Department of Children and Families to the Office of Licensing.

(h) When a person intends to care for six or more children under 13 years of age, he or she shall apply for and secure from the Office of Licensing a license to operate a child care center. Once licensed, the center is subject to all applicable provisions of this chapter, even if the number or ages of the children attending the center at a particular time should fall outside the definition of a center, as specified in N.J.A.C. 3A:52-1.2(a).

(i) The Office cannot complete initial program inspections unless six or more children are present at the center.

3A:52-1.2 Definition of child care center

(a) "Child care center" or "center" means any home or facility, by whatever name known, which is maintained for the care, development, or supervision of six or more children under 13 years of age who attend for less than 24 hours a day.

1. For a facility that is located in a sponsor's or sponsor representative's home, the Office of Licensing shall not count the children residing in the sponsor's or sponsor representative's home in determining whether the facility is serving the minimum number of children that would require it to be licensed as a center.

(b) The term "child care center" shall include, but not be limited to, day care centers; drop-in centers; night-time centers; recreation-type centers sponsored and operated by a county or municipal government recreation or park department or agency; day nurseries; nursery and play schools; cooperative child centers; centers for children with special needs; centers serving sick children; infant-toddler programs; school-age child care programs; employment-related centers; centers that had been licensed by the Department of Human Services prior to the enactment of the Child Care Center Licensing Act of 1984; and kindergartens and pre-kindergartens that are not an integral part of a private educational institution or system offering elementary education in grades kindergarten through sixth.

(c) The term "child care center" shall not include the following programs, since they do not meet the definition of a child care center:

1. A program serving fewer than six children who are below 13 years of age;
2. A program, such as that located in a bowling alley, health spa**,** or other facility, in which:
   i. Each child attends on a drop-in basis for no more than two hours; and
   ii. The parent of each child attending the program is in the same building, is readily accessible at all times on an on-call basis, and is able to resume control of the child immediately;
3. A child care program operating within a geographic area, enclave or facility that is owned or operated by the Federal government;
4. A family day care home that is registered pursuant to the Family Day Care Provider Registration Law, N.J.S.A. 30:5B-16 et seq.;
5. Programs that offer activities for children who attend at their own discretion on an "open door" basis, where there is no agreement, written or implied, between the program and the parent for the program to assume responsibility for the care of the child; and

6. A program offering child care on an ad hoc, sporadic, and isolated basis in order to meet an emergency or special need, such as during emergency school closings, conferences**,** or training sessions.

3A:52-1.3 Programs exempt from licensure

(a) The following programs are exempt from licensure pursuant to the laws specified in N.J.A.C. 3A:52-1.1(a):

1. Programs operated by the board of education of a local public school district which is responsible for their implementation and management;

2. Kindergartens, pre-kindergarten programs, or child care centers that are operated by and are an integral part of, a private educational institution or system providing elementary education in grades kindergarten through sixth;

i. For purposes of this paragraph, operation of a program by a private educational institution or system shall require direct operation and payment of staff by the operating institution or system.

ii. For purposes of this paragraph, a program is an integral part of a private educational institution or system if the program and the institution or system can reasonably demonstrate integration of the program based on geographic proximity, commonality of enrollment, and continuation of enrollment between the program and the institution or system, commonality of staffing, cohesion of an academic curriculum between programs, or some combination of the above.

3. Centers or special classes operated:

i. Primarily for religious instruction. To qualify for an exemption from licensing under this paragraph, a center or special class must:

(1) Be an integral part of a bona fide church or religion;

(2) Serve only children who are two years of age or older;

(3) Provide a program that is composed primarily of religious instruction in which the curriculum is related to religious themes, stories, or teachings; and

(4) For children under six years of age, operate and provide religious instruction for not more than two hours on any day; or

ii. For the temporary care of children while persons responsible for such children are attending religious services. To qualify for an exemption from licensure under this provision, a center or special class must:

(1) Provide care only for the children of participants in religious services that are an integral part of a bona fide church or religion;

(2) Be arranged by and responsible to the church or religion; and

(3) Provide child care only for the duration of time the services are in progress;

4. Programs of specialized activities or instruction for children that are not designed or intended for child care purposes, including, but not limited to: Boy Scouts, Girl Scouts, 4-H Clubs, Junior Achievement, and commercial indoor playground or sports centers where parents remain with pre-school children; and single activity programs, such as: athletics, gymnastics, hobbies, art, music, dance, and craft instruction, which are supervised by an

adult, agency or institution. To qualify for an exemption from licensing under this paragraph, a program must:

i. Provide activities that are supervised on a full-time basis by an adult; and

ii. Provide only a single instruction or activity program. For children under six years of age, such single instruction or activity programs shall be limited to not more than two hours on any day;

5. Homework or tutorial programs that submit documentation demonstrating that:

i. Time frames are developmentally appropriate for the age group served and children under six years of age do not attend the program for more than two hours;

ii. The tutorial or homework instruction is not designed for child care purposes;

iii. The tutorial or homework program is supervised on a full-time basis by an adult;

iv. There is no agreement, written or implied, between the tutorial or homework program and the parent to assume responsibility for the care of the child; and

v. There is no agreement, written or implied, between the tutorial or homework program that transportation is provided by the program.

6. Youth camps required to be licensed under the Youth Camp Safety Act of New Jersey, pursuant to N.J.S.A. 26:12-1 et seq. To qualify for an exemption from licensing under this provision, a program must have a valid and current license as a youth camp, issued by the New Jersey Department of Health. A youth camp sponsor who also operates a child care center shall also secure a license from the Office of Licensing for the center;

7. Regional schools operated by or under contract with the Department of Children and Families; and

8. Privately operated infant and preschool programs that are approved by the Department of Education to provide services exclusively to local school districts for children with disabilities, pursuant to N.J.S.A. 18A:46-1 et seq.

3A:52-1.4 Definitions of other terms

The following words and terms, when used in this chapter, shall have the following meanings:

"Child" means any person under 13 years of age.

“Denial of a license or a Certificate of Life/Safety Approval" means the withholding by the Office of Licensing of an initial license or Certificate of Life/Safety Approval, for which a center has applied.

"Department" means the New Jersey Department of Children and Families.

"Director" means the on-site staff member responsible for the daily operation and management of the center.

"Early childhood program" means a supervised group program serving six or more children under six years of age.

“Health care provider” means a physician, nurse practitioner, physician’s assistant, or other health care professional who is licensed or otherwise authorized by the state in which he or she practices to perform the applicable health care services specified in this chapter.

“Licensed capacity” means the maximum number of children a center can serve in the rooms approved as licensed space by the Office of Licensing.

"Office of Licensing" or "Office" means the Office of Licensing, New Jersey Department of Children and Families.

"Parent" means a birth or adoptive parent, legal guardian, or any other person having responsibility for, or custody of, a child.

"Person" means any individual, agency, corporation, company, association, organization, society, firm, partnership, joint stock company, the State or any political subdivision thereof.

"Refusal to renew a license or a Certificate of Life/Safety Approval" means the non-issuance of a license or a Certificate of Life/Safety Approval by the Office of Licensing to a center after its existing license or Certificate of Life/Safety Approval has expired.

"Regular Certificate of Life/Safety Approval" or "Regular Certificate" means a document issued by the Office of Licensing to a center that is eligible for such approval, indicating that the center is in full compliance with N.J.A.C. 3A:52-1.1(c).

"Regular license" means a document issued by the Office of Licensing to a center indicating that the center is in full compliance with all applicable provisions of this chapter.

"Revocation of a license or a Certificate of Life/Safety Approval" means a permanent removal of a center's current license or Certificate of Life/Safety Approval to operate.

"School-age child care program" means a supervised group program serving six or more children under 13 years of age who are enrolled in a public or private school, when their classes are not in session. The term, school-age child care program, may also include programs that serve: kindergarten children before or after their regular school session; and pre-kindergarten children before or after their regular school session if the pre-kindergarten children attend the program for no more than three and a half hours.

"Shall" denotes a provision of this chapter that a center must meet to qualify for a license.

"Should" denotes a recommendation reflecting goals towards which a center is encouraged to work.

"Sponsor" means any person(s), corporation, or governing board owning or legally responsible for operating a center.

"Sponsor representative" means any person who represents or acts on behalf of a sponsor.

"Staff member" or "staff" means any person(s) employed by or working for or at a center on a regularly scheduled basis. This includes full-time, part-time, voluntary, substitute, contract**,** or consulting personnel, whether compensated or not.

"Suspension of a license or a Certificate of Life/Safety Approval" means a temporary removal of a center's current license or Certificate of Life/Safety Approval to operate.

"Temporary Certificate of Life/Safety Approval" or "Temporary Certificate" means a document issued by the Office of Licensing to a center that is eligible for such approval, indicating that the center is in substantial compliance with N.J.A.C. 3A:52-1.1(c), provided that no serious or imminent hazard affecting the children exists in the center.

"Temporary license" means a document issued by the Office of Licensing to a center that is in substantial compliance with the applicable provisions of this chapter, provided that no serious or imminent hazard affecting the children exists in the center.

3A:52-1.5 Hours of care

(a) Centers operating during the normal waking hours shall not care for a child on a regular basis for more than 12 hours within a 24-hour period.

(b) Centers operating during the normal sleeping hours shall not care for a child on a regular basis for more than 16 hours within a 24-hour period.

SUBCHAPTER 2. LICENSING PROCEDURES

3A:52-2.1 Application for a license

(a) No person shall operate a center without first securing a license from the Office of Licensing. Any person who operates a center that does not have a valid license, or who uses fraud or misrepresentation in obtaining a license**,** or who advertises or provides any service not authorized by a valid license, or who violates any other provision of the laws specified in N.J.A.C. 3A:52-1.1(a), is guilty of a crime of the fourth degree, pursuant to N.J.S.A. 30:5B-13.

(b) A person applying for an initial license or renewal license to operate a center or relocation of a center shall submit a completed application to the Office of Licensing at least 45 days prior to the anticipated opening of the center or to the expiration of its existing regular license.

(c) An applicant for an initial or renewal license shall submit, with the completed application form, the specified licensing fee listed in the chart below, in the form of a check or money order made payable to the "Treasurer, State of New Jersey."

LICENSING FEES FOR CENTERS

Center's Licensed Capacity	Three Year Fee
6-15	$110.00
16-30	$140.00
31-60	$165.00
61-100	$195.00
101 -180	$220.00
181 and up	$250.00

(d) In lieu of the fees specified in (c) above, an applicant for an initial or renewal license who operates a Head Start center, pursuant to 42 U.S.C. §§ 9831 et seq., or a school-age child care program that does not charge a fee or require other compensation or services from parents, shall submit with the completed application form a $110.00 licensing fee, in the form of a check or money order made payable to the "Treasurer, State of New Jersey."

(e) If the application is denied, or the center does not open, the Office of Licensing shall refund the licensing fee to the applicant.

(f) The licensing fee will not be refunded once the Office of Licensing issues the center a license.

3A:52-2.2 Issuance of a license

(a) The Office of Licensing shall issue a regular license to a center that has achieved full compliance with all applicable provisions of this chapter.

(b) If the Office of Licensing determines that a center is in substantial compliance with, but does not meet all applicable provisions of this chapter, and provided that there is no serious or imminent hazard to the health, safety, well-being, and development of the children, the Office of Licensing shall issue a temporary license to the center and indicate in writing the steps the center must take to secure a regular license. When a center applies for its first license, a temporary license shall not be issued until the center has submitted to the Office of Licensing a satisfactory Certificate of Occupancy and documentation of compliance with State requirements, as specified in N.J.A.C. 3A:52-5.2 through 5.6.

(c) A temporary license may be issued for a period not to exceed six months. The Office of Licensing may issue as many temporary licenses as it deems necessary. However, a center shall not operate pursuant to temporary licenses for more than 18 months.

(d) Each licensing period, which may include the issuance of one or more temporary licenses and/or one regular license, shall be three years.

1. In determining the expiration date of the first regular license, the Office of Licensing shall compute the three-year licensing period from the date of issuance of the first temporary or regular license.

2. In determining the expiration date of a renewal regular license, the Office of Licensing shall compute the three-year licensing period from the date on which the center's previous regular license expired.

(e) The license shall be posted in a prominent location within the center and in each building associated with the center.

(f) A center shall not make claims contrary to its license, either in advertising or in any written or verbal announcement or presentation.

(g) A facility or program caring for children shall not claim in advertising, or in any written or verbal announcement or presentation, to be a licensed center unless it has secured a license from the Office of Licensing.

(h) A center shall not claim that it is licensed by any State department or agency other than the New Jersey Department of Children and Families, or that it is accredited by any State department.

(i) For those centers that do not have children in attendance for a period of six months or more, the centers shall be deemed as closed and a new license shall be issued should the center decide to serve children in the future.

3A:52-2.3 Location of a center

(a) The license shall be issued to a specific center sponsor or sponsor representative at a specific location and shall not be transferable.

(b) When two or more buildings are, or will be, utilized to accommodate centers operated by the same sponsor or sponsor representative, the sponsor or sponsor representative shall apply to the Office of Licensing for either:

1. A separate license for each center in each building; or

2. A single license covering all the buildings that comprise a single center, provided that:

i. The buildings are on the same or contiguous properties;

ii. The programs have the same director; and

iii. The Office of Licensing determines that issuance of a single license would not be detrimental to the health, safety, well-being, and development of the children served.

(c) A center shall not be located near or adjacent to areas determined by the Office of Licensing to be hazardous to the physical health and safety of the children.

(d) The requirements for co-location of a center within a multi-use building are as follows:

1. The sponsor or sponsor representative of a center that is, or seeks to be, co-located in a multi-use building shall indicate on its application the nature of the co-location.

2. Prior to approving the site, the Office of Licensing shall determine that the multi-use site does not pose a serious risk to the health, safety or well-being of the children.

3. During operating hours, the Office of Licensing may require the center to:

i. Operate in a separate room, floor, or section of the building;

ii. Have or use a separate entrance or toilet facility;

iii. Meet any other physical plant, staffing, program, or other operational requirements that are deemed necessary to protect the children from serious risk of harm stemming from the co-location;

iv. Not share common areas, such as hallways, gyms, or bathrooms; and

v. Have a schedule for outdoor time, if the outdoor play area is shared.

4. The sponsor or sponsor representative of a center that has been approved to be located in a multi-use building shall notify the Office of Licensing of any change in use by other occupants of the building, as specified in N.J.A.C. 3A:52-3.2(a).

(e) All new or relocating centers, after March 6, 2018, shall not be located in a building that was formerly a dry cleaner or funeral home.

3A:52-2.4 Denying, suspending, revoking, or refusing to renew a license or a Certificate of Life/Safety Approval

(a) The Office of Licensing may deny an application or suspend, revoke**,** or refuse to renew a license or a Certificate of Life/Safety Approval for good cause, including the following, as applicable:

1. Failure or refusal to comply with all applicable provisions of the laws specified in this chapter;

(i) Failure to comply with the provisions of this chapter shall also prevent a sponsor from obtaining a license for an additional child care center;

2. Violation of the terms and conditions of a license or a Certificate of Life/Safety Approval;

3. Use of fraud or misrepresentation in obtaining a license or a Certificate of Life/Safety Approval or in the subsequent operation of the center;

4. Refusal to furnish the Department with files, reports**,** or records, as required by this chapter;

5. Refusal to permit an authorized representative of the Department to gain admission to the center or to conduct an inspection or investigation during the center's operating hours;

6. Any activity, policy, or staff conduct that adversely affects or presents a serious hazard to the education, health, safety, well-being**,** or development of a child attending a center, or that otherwise demonstrates unfitness by a sponsor, sponsor representative, or staff member(s) to operate a center;

7. Failure to provide developmental activities that meet the physical, social, emotional, and cognitive needs of the children served;

8. Failure by the sponsor or sponsor representative to secure and maintain on file conviction disclosures, as specified in N.J.A.C. 3A:52-4.1(b)3, Child Abuse Record Information (CARI) background checks, as specified in N.J.A.C. 3A:52-4.10, or Criminal History Record Information (CHRI) fingerprint background checks, as specified in N.J.A.C. 3A:52-4.11;

9. A determination by the Department's Institutional Abuse Investigation Unit that children in the center are at risk of harm;

10. Refusal by the sponsor or sponsor representative to consent to a Child Abuse Record Information background check for himself or herself, or to terminate the employment of a staff member who refuses to consent to a Child Abuse Record Information background check;

11. Refusal by the sponsor or sponsor representative to terminate the employment of a staff member when a Child Abuse Record Information background check reveals that an incident of child abuse or neglect has been substantiated against the staff member;

12. A Child Abuse Record Information background check that reveals that an incident of child abuse or neglect has been substantiated against the sponsor or sponsor representative; or

13. Failure to comply with the provisions of P.L. 1998, c. 35, which prohibit smoking in child care centers, as specified in N.J.A.C. 3A:52-7.7(d).

(b) The Office of Licensing shall provide written notice to the sponsor or sponsor representative if it intends to deny an application or suspend, revoke, or refuse to renew a license or a Certificate of Life/Safety Approval. The notice shall specify the Office of Licensing's reasons for such action.

(c) If the Office of Licensing suspends a center's license or Certificate of Life/Safety Approval to prevent the imminent risk of harm to children served by the center, the Office of Licensing may reinstate the suspended license or Certificate of Life/Safety Approval upon the center's compliance with all applicable provisions of this chapter.

(d) If the Office of Licensing denies an application or revokes or refuses to renew a center's license or Certificate of Life/Safety Approval, as specified in (a) above, the sponsor or sponsor representative of the center shall be prohibited from reapplying for a license or a Certificate of Life/Safety Approval for one year from the date of the denial, revocation, or refusal to renew. After the one-year period has elapsed, the sponsor or sponsor representative may submit to the Office of Licensing a new application for a license or a Certificate of Life/Safety Approval.

(e) Each license and each Certificate of Life/Safety Approval issued by the Office of Licensing to a center is the property of the State of New Jersey. If the Office of Licensing

suspends or revokes a license or a Certificate of Life/Safety Approval, the center shall return the license or Certificate of Life/Safety Approval to the Office of Licensing immediately.

(f) If the Office of Licensing determines to suspend, revoke, or refuse to renew the center's license or Certificate of Life/Safety Approval, the Office of Licensing shall notify the parent of each enrolled child of the action.

1. Upon notification by the Office of Licensing of an action against the center's license or Certificate, the center shall provide to the Office of Licensing the name and mailing address of each child's parent.

2. Within 20 days after notifying the center of the action, the Office of Licensing shall:

i. Notify parents of the action against the center's license or Certificate;

ii. Advise parents of the center's right to contest the action through an administrative hearing before the Office of Administrative Law;

iii. Inform parents of the name, address, and telephone number of the resource and referral services offered by the appropriate State-contracted Child Care Resource and Referral agency for assistance in finding alternative child care arrangements, if necessary; and

iv. Notify the appropriate State-contracted Child Care Resource and Referral agency of the action.

(g) The Office may require the center to submit in writing a corrective action plan indicating the time frame and the actions the center shall take to comply with all applicable provisions of this chapter.

3A:52-2.5 Administrative hearings

(a) Before the Office of Licensing's decision to deny an application or suspend, refuse to renew, or revoke a center's license or Certificate of Life/Safety Approval becomes effective, the Office of Licensing shall afford the center an opportunity to request an administrative hearing, pursuant to the Administrative Procedure Act, N.J.S.A. 52:14B-1 et seq., and the Uniform Administrative Procedure Rules, N.J.A.C. 1:1.

(b) As long as the Department determines that the children are not at risk and no serious or imminent hazards exist, the Office of Licensing may permit a center that has requested an administrative hearing, as specified in (a) above, to continue to operate until a final decision is rendered as a result of the hearing.

3A:52-2.6 Complaints

(a) Whenever the Office of Licensing receives a report questioning the licensing status of a program or center or alleging that a licensed center is violating provisions of this chapter, the Office of Licensing shall ensure that the allegation is promptly investigated to determine whether the complaint is substantiated.

(b) After the report of the investigation has been completed, the Office of Licensing shall notify the sponsor or sponsor representative in writing of the results of the investigation,

pursuant to the State Open Public Records Law, N.J.S.A. 47:1A-1 et seq., except for any information not permitted to be disclosed pursuant to N.J.S.A. 9:6-8.10a.

(c) Whenever the Department, through its Office of Licensing, Institutional Abuse Investigation Unit, or local offices, conducts complaint investigations, the center shall cooperate with all Department investigators.

3A:52-2.7 Public access to the Office of Licensing's records

Licensing files maintained by the Office of Licensing are public records and shall be readily accessible for examination by any person, under the direction and supervision of the Office of Licensing, except when public access to records is restricted, in accordance with the Open Public Records Law or other applicable statutes.

3A:52-2.8 Procedures for securing a Certificate of Life/Safety Approval

(a) A center that is eligible for a Certificate of Life/Safety Approval, as specified in N.J.A.C. 3A:52-1.1(c), may apply for and secure such a Certificate from the Office of Licensing by complying with all provisions of N.J.A.C. 3A:52-2.1 through 2.8, except for 3A:52-2.1(c) and (d); and with all provisions of N.J.A.C. 3A:52-4.3, 4.10, 4.11, 5.2 through 5.6, 6.6, 7.5, 7.7, 7.8, 7.10, and 9.1 through 9.8.

(b) The applicant shall submit to the Office of Licensing a $110.00 fee in the form of a check or money order made payable to the "Treasurer, State of New Jersey," along with the completed application for a Certificate of Life/Safety Approval.

(c) When an applicant is the sponsor or sponsor representative of a licensed child care center and seeks to operate a seasonal or short-term program, as specified in N.J.A.C. 3A:52-1.1(c)1, at the same site, the applicant shall submit an application for a Certificate of Life/Safety Approval with no additional fee required. The sponsor or sponsor representative shall receive a Certificate of Life/Safety Approval in addition to a license.

(d) The Office of Licensing shall review the application and accompanying materials and conduct an on-site inspection of the center to determine whether it meets all applicable provisions of this chapter as specified in (a) above.

1. If the center is found to be in full compliance, the Office of Licensing shall issue a Regular Certificate of Life/Safety Approval to the center.

2. If the center is found to be in substantial compliance, and provided that there is no serious or imminent hazard to the health, safety, well-being and development of the children, the Office of Licensing shall issue a Temporary Certificate of Life/Safety Approval.

3. When a center applies for its first Certificate of Life/Safety Approval, a Temporary Certificate of Life/Safety Approval shall not be issued until the center has submitted to the Office of Licensing a satisfactory Certificate of Occupancy and documentation of compliance with State requirements, as specified in N.J.A.C. 3A:52-5.2 through 5.6.

SUBCHAPTER 3. CENTER ADMINISTRATION

3A:52-3.1 Administrative responsibility

(a) The sponsor or sponsor representative shall be legally responsible and held accountable by the Office of Licensing for the overall operation of the center and for ensuring the center's compliance with all applicable provisions of this chapter.

(b) When the sponsor is an entity owned or operated by two or more individuals, a corporation, or governing board, the sponsor shall designate an individual to represent the interests and act on behalf of the sponsor. For school-age child care programs, the sponsor's representative shall have a bachelor's degree.

3A:52-3.2 Reporting requirements

(a) The center shall notify the Office of Licensing verbally of any of the following changes or events by the next working day after the center learns of their occurrence:

1. Injury or illness that results in the admittance to a hospital or death of a child, as specified in N.J.A.C. 3A:52-7.10(b);
2. Change in use by other occupants of a multi-use building in which the center is located, as specified in N.J.A.C. 3A:52-2.3(d);
3. Permanent closing of the center;
4. Damage to the premises of the center caused by fire, accident or the elements;
5. Proposed use of emergency space, including relocation or use of rooms not approved by local municipal officials or by the Office of Licensing, as specified in N.J.A.C. 3A:52-5.3(q); and
6. Any conviction(s) or guilty plea(s) of the sponsor or sponsor representative, director, or any staff member, as specified in N.J.A.C. 3A:52-4.1(b)3, (c)2, and (d)2.

(b) The center shall notify the Office of Licensing verbally at least three working days in advance of any proposed change to the licensing information previously submitted to the Office of Licensing on the completed application, including, but not limited to, changes in location and in keeping with the requirements specified at N.J.A.C. 3A:52-5.3(i). The center shall notify the Office of Licensing in writing within 30 calendar days of any such change(s).

3A:52-3.3 Center records

(a) Requirements for access to center records are as follows:

1. The center's records shall be open for inspection by authorized representatives of the Office of Licensing.
2. The center's records shall be open for inspection by authorized representatives of the Department's Institutional Abuse Investigation Unit (IAIU), provided that they may only secure information about children under the Department's supervision.

(b) Requirements for maintenance of center records are as follows:

1. Children's records shall be maintained on file for one year after the child is no longer enrolled at the center.

i. Records for children currently enrolled at the center shall be maintained on file at the center, unless otherwise specified in this chapter.

ii. Records for children no longer enrolled at the center shall be maintained on file either at the center or at a central administrative office.

2. Staff records shall be maintained on file for one year after the staff member is no longer working at the center.

i. Records for staff members currently working at the center shall be maintained on file at the center.

ii. Records for staff members no longer working at the center shall be maintained on file either at the center or at a central administrative office.

3. All other records shall be maintained on file at the center for one year after the record is made or received, unless otherwise specified in this chapter.

3A:52-3.4 Comprehensive general liability insurance

The sponsor or sponsor representative shall secure comprehensive general liability insurance coverage for the center and shall maintain on file a copy of the insurance policy or documentation of current insurance coverage.

3A:52-3.5 Communication requirements

(a) The center shall have:

1. Its own telephone; and

2. An e-mail account and address checked regularly by the Director. E-mail access need not be available on site.

(b) The center shall provide parents of all enrolled children with its telephone number, either in writing or by e-mail. This telephone number shall provide parents direct on-site contact during operating hours.

(c) The center shall promptly inform the Office of Licensing of changes to its e-mail address or telephone number.

3A:52-3.6 Information to Parents document

(a) The center shall give to the parent(s) of every enrolled child and to every staff member, a written Information to Parents document designated by the Office of Licensing and indicating that the center is required to:

1. Be licensed by the Office of Licensing, Department of Children and Families;
2. Comply with all applicable provisions of this chapter;
3. Post its license in a prominent location within the center;
4. Retain a current copy of this chapter and make it available for parents' review;
5. Indicate how parents can secure a copy of this chapter and obtain information about the licensing process from the Office of Licensing;

6. Make available to parents, upon request, the Office of Licensing's Life/Safety and Program Inspection/Violation and Complaint Investigation Summary report(s) on the center, as well as any letters of enforcement or other actions taken against the center during the center's current licensing period;

7. Post a listing or diagram of those rooms and areas that have been approved by the Office of Licensing for children's use;

8. Comply with the inspection and investigation functions of the Department, including the interviewing of staff members and children;

9. Afford parents the opportunity and time to review and discuss with the center director, sponsor, or sponsor representative any questions or concerns about the policies and procedures of the center or whether the center is in compliance with all applicable provisions of this chapter;

10. Advise parents that if they believe or suspect that the center is violating any requirement of this chapter, they may report such alleged violations to the center sponsor, sponsor representative, or director or to the Office of Licensing;

11. Afford parents of enrolled children an opportunity to participate in the center's operation and activities and to assist the center in complying with licensing requirements;

12. Afford parents of enrolled children the opportunity to visit the center at any time during the center's hours of operation to observe its operation and program activities without having to secure prior approval;

13. Provide parents with advance notice of any field trip, outing or special event involving the transportation of children away from the center, and, for each event, secure the written consent of the parent(s) before taking a child on such a field trip, outing or special event;

14. Post a copy of the center's written statement of policy on the disciplining of children by staff members in a prominent location within the center, and make a copy of it available to parents upon request;

15. Indicate, through this document, that any person who has reasonable cause to believe that a child has been or is being subjected to child abuse or neglect is required by N.J.S.A. 9:6-8.10 to report such allegations to the State Central Registry Hotline (1-877 NJ ABUSE/1-877-652-2873) immediately, and indicate that such reports may be made anonymously;

16. Indicate through this document how parents and staff members may secure information about child abuse and neglect from the Department;

17. Inform parents of the center's policy on the release of children;

18. Inform parents of the center's policy on administering medication and health care procedures;

19. Provide parents with a copy of the center's policy on management of communicable diseases;

20. Provide parents with a copy of the center’s policy on the expulsion of children from enrollment;

21. Inform parents that the center is required to provide reasonable accommodations for children and parents with disabilities and to comply with the New Jersey Law Against Discrimination (LAD), P.L. 1945, c. 169 (N.J.S.A. 10:5-1 et seq.), and the Americans with Disabilities Act (ADA), P.L. 101-336 (42 U.S.C. §§12101 et seq.), and indicate that anyone who believes the center is not in compliance with these laws may contact the Division on Civil Rights in the New Jersey Department of Law and Public Safety for information about filing an LAD claim at (609) 292-4605 (TTY users may dial 711 to reach the New Jersey Relay Operator and ask for (609) 292-7701), or may contact the United States Department of

Justice for information about filing an ADA claim at (800) 514-0301 or (800) 514-0383 (TTY); and

22. Inform parents that the center is required to maintain and update, at least annually, a list from the Consumer Product Safety Commission (CPSC) regarding unsafe products and make the list available to staff and parents or provide parents with the CPSC website at www.cpsc.gov/Recalls.

(b) The center shall distribute a copy of the Information to Parents document to each child's parent(s) upon enrollment and to every person upon becoming a staff member and secure and maintain on file a record of each parent's and staff member's signature attesting to receipt of the document.

1. The center shall maintain on file a copy of the Information to Parents document.

SUBCHAPTER 4. STAFF REQUIREMENTS

3A:52-4.1 General requirements for sponsor, sponsor representative, director, and all staff members

(a) The sponsor, sponsor representative, director, and every staff member shall:

1. Be of good character and reputation;

2. Be in sufficient physical, mental and emotional health to perform his or her job duties satisfactorily; and

3. Possess skills, attributes, and characteristics conducive to and suitable for sponsoring a center or dealing with children, as applicable.

(b) Prior to hiring or utilizing a director or a staff member who will be working at the center on a regularly scheduled basis, the sponsor, sponsor representative, or director shall complete and maintain on file for each individual a Staff Records Checklist, signed by the sponsor, sponsor representative, or director and designated by the Office of Licensing, indicating that the center has obtained documentation of the following:

1. The individual's name, address, telephone number and signature;

2. Education and work experience;

3. Disclosure of the presence or absence of conviction(s) for crimes or disorderly persons offenses;

4. Completion of a Child Abuse Record Information background check, as specified in N.J.A.C. 3A:52-4.10, and a Criminal History Record Information fingerprint background check, as specified in N.J.A.C. 3A:52-4.11;

5. Completion of a Mantoux tuberculin skin test, as specified in N.J.A.C. 3A:52-7.4(a), and physical examination, as specified in N.J.A.C. 3A:52-7.4 (b);

6. The staff member's signature attesting to the receipt of the policy statement on the disciplining of children by staff members, as specified in N.J.A.C. 3A:52-6.6(e);

7. The staff member's signature attesting to the receipt of the Information to Parents document, as specified in N.J.A.C. 3A:52-3.6(b); and

8. Two written or verbal references on each individual.

i. The references shall be secured from former employers or other persons who have knowledge of the individual's work experience or education and who can attest to the individual's suitability to work with children.

ii. The verbal references shall be documented in writing by the sponsor, sponsor representative, or director.

(c) The sponsor or sponsor representative shall:

1. Maintain on file, regarding himself or herself, the results of the Child Abuse Record Information background check and the Criminal History Record Information fingerprint background check, as specified in (b)4 above; and

2. Disclose to the Office of Licensing, in writing, the following:

i. The sponsor or sponsor representative's name, address, and telephone number;

ii. The sponsor or sponsor representative's signed statement of the presence or absence of conviction(s) for crimes or disorderly persons offenses; and

iii. Information about and circumstances surrounding any previous denial, suspension, revocation or non-renewal of a license to own or operate a center either by the Office of Licensing or by the licensing agency of another state.

(d) The staff records specified in (a) through (c) above shall be maintained on file as follows:

1. The Staff Records Checklist for the current director and all staff members currently working at the center shall be maintained on file at the center.

2. The Staff Records Checklist for the former director and staff members no longer working at the center shall be maintained on file either at the center or at a central administrative office. The checklist shall be updated to indicate the reason for discontinuance of employment.

3. Documentation of the information listed in the Staff Records Checklist shall be maintained on file either at the center or at a central administrative office.

(e) Failure by a sponsor, sponsor representative, director, or other staff member to comply with the requirements specified in (a) through (c) above or any evidence demonstrating unfitness or unsuitability to fulfill the responsibilities and duties of his or her position or to serve or deal with children in an appropriate manner shall constitute grounds for one or more of the following actions:

1. Removal of the sponsor, sponsor representative, director, or other staff member from his or her position;
2. Reassignment to other duties that do not involve contact with children;
3. Termination from the center; or
4. Denial, refusal to renew, suspension or revocation of the center's license.

(f) Evidence of a previous denial, suspension, revocation, or non-renewal of a license, as specified in (c)2iii above, shall not in and of itself result in an automatic disqualification of the sponsor, sponsor representative, prospective sponsor, or prospective sponsor representative to secure a license for another or the same center, but shall constitute grounds for the Office of Licensing to investigate the circumstances that led to the original negative action and to make a determination as to whether to reject or process the new application for a license.

3A:52-4.2 Staffing requirements

(a) Each center shall have the following staff members:

1. A sponsor or sponsor representative, who may also serve as the director and as one of the staff members specified in (a)3 below;

2. A director, who may also serve as one of the staff members specified in (a)3 below;

3. One or more of the applicable qualified staff members, as specified in the charts in (b) and (c) below for each program type offered; and

4. Additional staff members, as necessary, to meet staff/child ratio requirements, as specified in N.J.A.C. 3A:52-4.3.

i. If the center offers an early childhood program and a school-age child care program, but has fewer than six children in one of those programs, the center shall only be required to meet the staffing requirements of the program serving six or more children.

ii. If the center offers an early childhood program and a school-age child care program, and has fewer than six children in each program, the center shall meet the staffing requirements in either (b) or (c) below.

(b) For early childhood programs, the following shall apply:

1. Based on the center's licensed capacity, the center shall have one or more head teachers, group teachers, and/or consulting head teachers, as specified in the chart below:

TYPES OF STAFF REQUIRED
AT EARLY CHILDHOOD PROGRAMS

Licensed Capacity	**Head Teacher(s)**		**Group Teacher(s)**		**Consulting Head Teacher**
6-15	1	or	1	or	1
16-30	1	or	(1	and	1)
31-60	1				
61-120	1	and	1		
121-180	1	and	2		
181-240	2	and	2		
241-300	2	and	3		
301-360	3	and	3		
361-420	3	and	4		
421-480	4	and	4		
481-540	4	and	5		

* A staff member who meets the head teacher qualifications, as specified in N.J.A.C. 3A:52-4.6(c), may be utilized as a required group teacher.

i. As an exception to the staffing requirements in the chart above, centers with a licensed capacity of from six to 30 children, 50 percent or more of whom have special needs as a result of a cognitive, socio-emotional or physical disability or disorder, shall have a head teacher.

(c) For school-age child care programs, the following shall apply:

1. Based on center size, the center shall have one or more program supervisors at each site as specified in the chart below:

TYPES OF STAFF MEMBERS REQUIRED
AT SCHOOL-AGE CHILD CARE PROGRAMS

Licensed Capacity	**Program Supervisor(s)**
6-180	1
181-360	2
361-540	3

(d) Programs operating at a capacity beyond 540 children shall have an additional program supervisor, as specified in N.J.A.C. 3A:52-4.6(d), for each additional group of 100 children.

3A:52-4.3 Staff/child ratios and supervision

(a) The children shall be supervised directly by a staff member at all times, including during outdoor activities, rest and sleep, and walking through hallways. Toileting procedures shall be supervised by a staff member as appropriate for the ages and developmental needs of the children.

1. The center shall develop and implement an Office of Licensing-approved method to keep track of the location and ensure the safety of all children at all times when under the center's supervision, including the transfer of supervision from and to parents during arrival and departure and the utilization of off-site locations, including playgrounds and field trips

2. The center shall ensure that all staff members are trained in the method of .keeping track of children and know how many children are in their care at all times.

(b) There shall be a minimum of two staff members accompanying children on any field trip, outing, or special event involving children away from the center, even when the appropriate staff/child ratios allow fewer than two staff members.

(c) The following staff/child ratios shall apply, except as specified in (d) through (f) below:

Age	Staff/Child Ratio
Under 18 months	1:4
18 months up to 2 ½ years	1:6
2 ½ years up to 4 years	1:10
4 years	1:12
5 years and older	1:15

(d) The following staff/child ratios shall apply during rest or sleep, when the criteria listed in (d) 1, 2, and 3 below are met:

Age	Staff/Child Ratio
Under 18 months	1:10
18 months to under 2 ½ years	1:12
2 ½ years and above	1:20

1. At least one staff member shall be physically present in the room or area in which children are napping and shall be able to summon other staff members without leaving the room or area.

2. A sufficient number of staff members shall be in the facility and readily accessible to ensure compliance with the awake staff/child ratios specified in (c) above.

3. Naptime preparations shall have been completed and all children 18 months or above are resting or sleeping, while all children under 18 months of age are sleeping.

(e) The following staff/child ratios shall apply for centers serving children, 50 percent or more of whom have special needs, as a result of a cognitive, socio-emotional, or physical disability or disorder:

Age	Staff/Child Ratio
Under 2 ½ years	1:3
2 ½ years of age and over (non-ambulatory)	1:3
2 ½ years of age and over (ambulatory)	1:5

(f) Centers serving children who are sick shall comply with the variation on staff/child ratios for sick children, as specified in N.J.A.C. 3A:52-8.3(c).

(g) In computing the required number of staff, the center shall apply the applicable staff/child ratios, as specified in (c) through (f) above, to the actual number of children in attendance at the center. The total number of staff members required for a center shall be the sum total of staff members required per room or area within a large room that has been divided by partitions, furniture or other barrier. The number of staff members per room or area within a large divided room shall be computed by dividing the number of children in attendance per room or area within a large divided room at any given time by the staff/child ratio required for the age of the children served. When this resulting figure is any fraction above a whole number, an additional staff member shall be required.

(h) When children of mixed ages requiring different staff/child ratios are in one room or area within a large divided room, the center shall compute the staff/child ratios applicable for each group separately to the nearest tenth decimal. If the resulting cumulative figure for all age groups is any fraction above a whole number, an additional staff member shall be required.

(i) For purposes of determining whether a required staff/child ratio is met, only those staff members who are involved in the direct care and supervision of children shall be counted.

(j) Staff members who are under 18 years of age shall be directly supervised by and visible to a staff member who is 18 years of age or older.

(k) For early childhood programs, the following shall apply:

1. A minimum of two staff members, one of whom shall be at least 18 years of age, shall be present and involved in the care of children when:

i. At least six children are present, who are below six years of age; or

ii. Fewer than six children are present but applicable staff/child ratios, governing children below 18 months of age or children with special needs, require two staff members.

2. The following minimum ages of staff members shall apply for purposes of computing the staff/child ratio:

i. Only staff members who are at least 14 years of age shall be counted for the staff/child ratio; and

ii. Staff members below 16 years of age shall only be utilized when school is not in session, or, if school is in session, only if they are participating in a school/work program.

(l) For school-age child care programs, the following shall apply:

1. A minimum of two staff members, one of whom shall be at least 18 years of age, shall be at the center and involved in the care of children when six or more children are present, except as specified in (l)2 and 3 below.

2. A minimum of one staff member, who shall be at least 18 years of age, shall be at the center and involved in the care of children when all the provisions in (l)2i through iv below are met:

i. Children attend for no more than one and one half hours;

ii. No more than five children present are below six years of age;

iii. No more than 12 children are present; and

iv. An additional adult has agreed to be available and immediately accessible in an emergency.

3. A minimum of one staff member, who shall be at least 18 years of age, shall escort up to 12 children on any walk including walks to and from their school and the center.

4. Only staff members who are at least 16 years of age shall be counted for the staff/child ratio.

3A:52-4.4 Grouping of children

(a) For early childhood programs, the following shall apply for infants (under 18 months of age) and toddlers (18 months to 2½ years of age):

1. A particular staff member shall be assigned as the primary caregiver to each specific group of children, in accordance with applicable staff/child ratios, as specified in N.J.A.C. 3A:52-4.3;

2. A group shall consist of four infants or six toddlers to whom a primary caregiver has been assigned;

3. The primary caregiver shall ensure that the needs of each child in the group are met, including:

i. Feeding the child and following each infant's individual feeding schedule, as specified in N.J.A.C. 3A:52-6.3(b);

ii. Diapering the child, if applicable, as specified in N.J.A.C. 3A:52-7.8(d);

iii. Assisting the child in toilet training, if applicable, in keeping with the center's toilet training policy, as specified in N.J.A.C. 3A:52-7.7(e)3; and

iv. Recording any unusual incidents involving the child and ensuring that the child's parents are informed of them, as specified in N.J.A.C. 3A:52-4.9(b).

4. If more than 12 infants or 20 toddlers occupy an individual room or a specific area within a large room, areas for up to 12 infants or 20 toddlers shall be defined by visible barriers, partitions, or any other room dividers or separations having a height above the eye level of the children who use those areas.

(b) For early childhood programs, the following shall apply for children 2 ½ years of age and older:

1. A group shall consist of the number of children:

i. Occupying an individual room or occupying a specific area within a large room. The area shall be defined by a visible barrier, partition, or any other room divider or separation having a height above the eye level of the children who use that area; or

ii. Engaged together in a particular activity at any given time, regardless of whether the room or area within a large room is divided or partitioned.

2. Each group shall be limited to a maximum of 20 children except during meals, naptime, outdoor activities, specially-scheduled events (for example, parties, community speakers, films, etc.), and daily information sharing sessions (for example, “circle time”), which shall not exceed 15 minutes in duration.

(c) For school-age child care programs, the following shall apply:

1. A group shall consist of the number of children:

i. Occupying an individual room or occupying a specific area within a large room. The area shall be defined by a visible barrier, partition, or any other room divider or separation having a height above the eye level of the children who use that area; or

ii. Engaged together in a particular activity at any given time, regardless of whether the room or area within a large room is divided or partitioned.

2. Each group shall be limited to a maximum of 30 children except during meals, outdoor activities**,** and specially-scheduled events.

3A:52-4.5 Staff responsibilities

(a) The sponsor or sponsor representative shall:

1. Be responsible for hiring or appointing a director;

2. Ensure that the center complies with all applicable provisions of this chapter; and

3. Designate individuals with the authority and responsibility to:

i. Develop and implement written policies and procedures for the operation of the center, including:

(1) A table of organization that illustrates lines of authority, responsibility and communication; and

(2) Job descriptions, titles and qualifications for all center staff;

ii. Ensure the supervision of all staff members;

iii. Ensure that all staff members complete staff orientation and development, as specified in N.J.A.C. 3A:52-4.7 and 4.8;

iv. Ensure the establishment of administrative, staff and children's records; and

v. Ensure the establishment of a staff member substitute system.

(b) The director shall have the authority and responsibility for:

1. The observation of all groups of children, including:

i. Daily unannounced visits by the director, on a random daily time schedule, to each group of children; and

ii. For centers with an audio or visual monitoring system, as specified in N.J.A.C. 3A:52-5.6(c)1i, observation of such a system, on a random daily time schedule, by the director;

2. The implementation of policies and procedures for the day-to-day operation of the center, including:

i. Maintenance of staff attendance records indicating daily hours worked; and

ii. Maintenance of children's daily attendance records, including the daily time of arrival and departure; and

3. The orientation of staff members to the day-to-day operation of the center, including physical layout and daily policies and procedures.

(c) When the director is absent from the center for any length of time, he or she shall designate a responsible person to assume and carry out all responsibilities of the director, as specified in (b) above.

1. The director shall be scheduled to work at the center at least 50 percent of the center's daily operating hours.

2. The director or his or her designee(s) shall be on the premises at all times when the center is operating and the following shall apply:

i. The designee shall not have full-time classroom responsibilities during the times when the director is not present at the center.

ii. The designee shall complete staff development in understanding licensing rules as provided by the Office.

iii. The designee shall complete 20 hours of continuing staff development each year.

(d) When the director or any head teacher or required group teacher or required program supervisor is away from the center for six or more weeks, the sponsor, sponsor representative, or director shall hire or designate a staff member(s) who possesses the applicable staff qualifications for the position, as specified in N.J.A.C. 3A:52-4.6, to assume the applicable responsibilities of the position, as specified in this section.

(e) For early childhood programs, the following shall apply:

1. The head teacher(s) shall have the authority and responsibility to:

i. Ensure the development and implementation of the center's child development and activities program for children below six years of age; and

ii. Ensure the appropriateness of program activities according to both the age and developmental level of the child, as specified in N.J.A.C. 3A:52-6.1(a).

2. The head teacher shall be scheduled to:

i. Work at the center for at least 75 percent of the center's daily operating hours or at least six hours a day, whichever is less; and

ii. Plan, discuss and observe the implementation of program activities by staff members for all groups of children.

3. A head teacher who also serves as director shall be free of full-time responsibility for the direct supervision of a specific group of children.

4. The group teacher(s) shall be scheduled and have the authority and responsibility to:

i. Work at the center for at least 75 percent of the center's daily operating hour or at least six hours a day, whichever is less;

ii. Assist the head teacher in implementing the center's child development and activities program; and

iii. Assist the head teacher in ensuring that the program activities are appropriate to both the age and developmental level of the children served, as specified in N.J.A.C. 3A:52-6.1(a).

5. A group teacher who serves in lieu of a head teacher for a center having a capacity of up to 30 children, as specified in N.J.A.C. 3A:52-4.2(b)1, shall fulfill the responsibilities for head teacher, as specified in (e)1 through 3 above.

6. A group teacher who also serves as director for a center having a capacity of up to 30 children shall be free of full-time responsibility for the direct supervision of a specific group of children.

7. For centers using a consulting head teacher, the following shall apply:

i. The consulting head teacher shall make at least two on-site visits to the center per month, for a sufficient length of time to conduct staff development, observe the center's program, and ensure that the provisions specified in (e)1 above are met.

ii. The consulting head teacher shall have the authority and responsibility to observe and evaluate the group teacher, conditional head teacher**,** or other staff member in charge of the center's program during each on-site visit.

iii. The center shall maintain on file a written record of:

(1) The date, time, purpose, and nature of each visit by the consulting head teacher; and

(2) The consulting head teacher's observation of the program and evaluation of the staff member in charge of the program.

8. All staff that work with children under 2 1/2 years of age shall have training specific to this age group, which may include, but is not limited to, the New Jersey Infant/Toddler Credential administered through Professional Impact NJ, the Infant-Toddler Child Development Associate (CDA) Credential, or other trainings specifically related to the care of infants and toddlers. Each employee shall initiate this training within 90 days and complete it within one year.

(f) For school-age child care programs, the following shall apply:

1. The program supervisor shall have the authority and responsibility to:

i. Ensure the development and implementation of the center's child development and activities program for school-age children;

ii. Ensure the appropriateness of program activities according to the age and developmental level of the child, as specified in N.J.A.C. 3A:52-6.1(a); and

iii. Be scheduled to work for at least 75 percent of the school-age child care program's daily operating hours. The program supervisor shall spend time at both the before-school and after-school programs, if the center provides both programs.

3A:52-4.6 Staff qualifications

(a) The center shall maintain on file a Staff Records Checklist designated by the Office of Licensing, as specified in N.J.A.C. 3A:52-4.1(b), indicating that the center has obtained documentation of the applicable staff education and experience, as specified in (b) through (d) below.

(b) The director shall meet the following qualification requirements:

1. For early childhood programs licensed to serve more than 30 children, the director shall meet the qualification requirements specified in one of the options set forth in the chart below for education and experience:

OPTIONS FOR MEETING THE DIRECTOR QUALIFICATIONS

Option	Educational Credits	and	Experience Requirements
A	Master's Degree in any field related to children or business		(N/A)

B	Bachelor's Degree	One year of managerial or supervisory experience

2. For early childhood programs licensed to serve 30 or fewer children, the director shall meet the group teacher qualification requirements, as specified in (c)3 below.

3. For school-age child care programs, the director shall meet the program supervisor qualification requirements, as specified in (d) below.

(c) For early childhood programs, the following shall apply:

1. For all centers, the head teacher or consulting head teacher shall meet the qualification requirements specified in one of the seven options set forth in the chart below for education and experience:

OPTIONS FOR MEETING THE HEAD TEACHER QUALIFICATIONS

Option	Educational Credentials	AND	College Credits and Experience
A	Master's Degree in Education		Six credits and one year of experience
B	Master's Degree in any field other than Education		Nine credits and one year of experience
C	Bachelor's Degree in Education, Psychology, Health Care, Nursing, or any other field related to Child Growth and Development; or Teaching Certification from Department of Education in Elementary Education, Nursery School, Preschool through Third Grade (P-3) or Teacher of the Handicapped		Six credits and two years of experience
D	Bachelor's Degree in any field other than those listed in Option C		Nine credits and three years of experience OR Six credits and four years of experience
E	Teaching Certification from Department of Education in a field other than those listed in Option C		Nine credits and three years of experience OR Six credits and four years of experience
F	Montessori education equivalent to a Bachelor's Degree		Two years of experience

G	Head Teacher endorsement from the New Jersey Registry for Childhood Professionals, Professional Impact New Jersey

i. The credits specified in the chart above shall be college credits in early childhood education or child development. These credits may be part of the bachelor's or master's degree or constitute additional credits beyond the degree(s).

ii. The years of experience specified in the chart above shall be full-time experience in a group program for children under six years of age. This experience may include supervised practice teaching or student teaching.

iii. The Office of Licensing may grant conditional approval for a head teacher who has the required educational credentials but has insufficient college credits or experience to meet all the qualifications specified in the chart in (c)1 above.

(1) For conditional approval, the center shall maintain on file documentation of enrollment in courses leading to the required credits, or of employment leading to the required experience, as specified in the chart above.

(2) Conditional approval shall be valid for a maximum of two years, at which time the center shall obtain and maintain on file a transcript indicating completion of the required credits, or documentation of completion of the required experience, as applicable.

(3) When the head teacher has received conditional approval, the center shall have a consulting head teacher until the head teacher has met all applicable qualifications specified in the chart in (c)1 above.

2. For recreation-type centers sponsored by a county or municipal government recreation department, park department, or agency, the head teacher or consulting head teacher shall have:

i. One of the options specified in the chart in (c)1 above; or

ii. Certification as a Recreation Administrator or a Recreation Supervisor from the New Jersey Department of Community Affairs, Board of Recreation Examiners (BRE) and two years of recreation experience; or

iii. Certification as a Recreation Professional from the National Recreation and Park Association (NRPA) and two years of recreation experience.

3. The group teacher shall meet the following requirements for experience and education:

i. One year of teaching experience in a group program for children under six years of age, which may include supervised practice teaching and/or student teaching; and

ii. One of the options set forth in the chart below for educational credentials:

OPTIONS FOR MEETING THE GROUP TEACHER EDUCATIONAL QUALIFICATIONS

Option	Educational Credentials
A	Associate’s Degree in Early Childhood Education or Child Development
B	Six college credits in Early Childhood Education or Child Development

	AND Nine college credits in Education, Psychology, Health Care, Nursing, or any other field related to child growth or development
C	Child Development Associate (CDA) Credential
D	Certified Child Care Professional (CCP) Certificate
E	Group Teacher endorsement from the New Jersey Registry for Childhood Professionals, Professional Impact New Jersey
F	New Jersey Infant/Toddler Credential administered through Professional Impact New Jersey

4. For recreation-type centers sponsored by a county or municipal government recreation department, park department or agency, the group teacher may substitute:

i. One year of recreation experience for the experience specified in (c)3i above; and

ii. Certification as a Recreation Technician from the NRPA for the educational credentials specified in (c)3ii above.

5. For conditional approval, the group teacher shall meet the qualification requirements specified in one of the options set forth in the chart below. The center shall obtain and maintain on file documentation that the staff member has acquired the remaining college credits in the areas specified in Option B in (c)3ii above within the time period specified below:

OPTIONS FOR MEETING THE GROUP TEACHER CONDITIONAL APPROVAL QUALIFICATIONS

Option	College Credits Earned	Experience Completed	Remaining Credits	Time Limit to Obtain Remaining Credits
A	12 college credits in Early Childhood Education, Child Development, Education, Psychology, Health care, Nursing, or any other field related to child growth or development	One year of teaching experience in a group program for children under six years of age	3 credits	Nine months

B	Six college credits in Early Childhood Education or Child Development	Three years of teaching experience in a group program for children under six years of age	9 credits	Two years		

(d) For school-age child care programs, the following shall apply:

1. The program supervisor shall meet the qualification requirements specified in one of the applicable options set forth in the chart below for education, training**,** and experience, based on the center's licensed capacity:

REQUIREMENTS FOR PROGRAM SUPERVISOR QUALIFICATIONS

Option	Licensed Capacity	Educational and Credentials	AND	Training	AND	Experience
A	6-15	High School Diploma or General Education Development (GED) Diploma		6 hours (in child care)		2 years
B	16-30	High School Diploma or General Education Development (GED) Diploma		6 hours (in child care)		3 years
		OR				
		Certificate as a Recreation Technician from the National Recreation and Park Association (NRPA)		6 hours (in child care)		1 year
		OR				
		Child Development Associate (CDA) Certificate; Group Teacher Approval; or 15 college credits in child development, education, recreation, psychology, health care, nursing or any other field related to child growth and development		6 hours (in child care)		1 year

		OR		
		15 college credits in areas not related to children	6 hours (in child care)	2 years
C	31 or more	High School Diploma or General Education Development (GED) Diploma	6 hours (in child care) AND 3 hours (in child program management)	
		OR		
		Certificate as a Recreation Technician from the National Recreation and Park Association (NRPA)	6 hours (in child care) AND 3 hours (in child program management)	2 years
		OR		
		Child Development Associate (CDA) Certificate; Group Teacher Approval; or 15 college credits in child development, education, recreation, psychology, health care, nursing or any other field related to child growth and development	6 hours (in child care) AND 3 hours (in child program management)	2 years
		OR		
		15 college credits in areas not related to children	6 hours (in child care) AND 3 hours (in child program management)	3 years
		OR		

	Associate's Degree in any field	6 hours (in child care) AND 3 hours (in child program management)	2 years
	OR		
	Bachelor's Degree in a child related field; or Office of Licensing Head Teacher Approval	3 hours (in child program management)	1 year
	OR		
	Certificate as a Recreation Administrator, Recreation Supervisor or Recreation Professional	3 hours (in child program management)	1 year
	OR		
	Bachelor's Degree in an unrelated field	6 hours (in child care) AND 3 hours (in child program management)	1 year
D	School Age Program Supervisor endorsement from the New Jersey Registry for Childhood Professionals, Professional Impact New Jersey		

2. The training specified in the chart above shall:
   i. Be clock hours of training;
   ii. Be completed within the nine months following Office of Licensing approval as program supervisor;
   iii. Be in areas related to the ages of the children in care; and
   iv. Meet the requirements specified in (d)3 and 4 below.
3. Child care training shall include all of the following:
   i. Child growth and development;
   ii. Positive guidance and discipline;
   iii. Nutrition and good eating habits;
   iv. Family involvement and communication with families;
   v. Program planning and development;
   vi. Creating a classroom environment;

vii. Health and safety procedures, including recognition of illness and disease and training in basic infection control techniques;

viii. Physical education or recreational activities for children; and

ix. Understanding New Jersey's child care licensing regulations.

4. Program management training shall include all of the following:

i. Program activity planning and development;

ii. Family involvement and communication with families;

iii. Availability of community services;

iv. Personnel responsibilities and procedures; and

v. Understanding New Jersey's child care licensing regulations.

5. The experience specified in the chart above shall be obtained in a group program for school-age children.

3A:52-4.7 Staff orientation and development

(a) The center shall meet the following requirements for orientation training:

1. The center shall ensure that all newly-hired staff receives orientation training within two weeks of hire and that no individual is left alone to supervise a child or group of children until orientation training is completed.

2. The center shall ensure that all current staff members are retrained in the training topics listed in N.J.A.C.3A:52-4.8(a) each year.

3. The center shall secure and maintain on file each staff member's signature attesting to the review of the orientation training upon hire and annually.

3A:52-4.8 Orientation training

(a) Topics of orientation training shall include all of the following:

1. Supervising and tracking all children, as specified in N.J.A.C. 3A:52-4.3(a);

2. Understanding center operations, policies and procedures, as specified in N.J.A.C. 3A:52-4.5(b)3;

3. Implementing group size limits and primary caregiver responsibilities, as applicable, as specified in N.J.A.C. 3A:52-4.4;

4. Recognizing and reporting child abuse or neglect, as specified in N.J.A.C. 3A:52-4.9;

5. Evacuating the center and using the fire alarms, as specified in N.J.A.C. 3A:52-5.3(l);

6. Implementing the center's release policy, as specified in N.J.A.C. 3A:52-6.5;

7. Implementing the center's statement of policy on the disciplining of children, as specified in N.J.A.C. 3A:52-6.6;

8. Implementing health practices, including medication administration and responding to symptoms of illness, as specified in N.J.A.C. 3A:52-7.1 through 7.11;

9. Implementing safe sleep practices to prevent Sudden Infant Death Syndrome;

10. Preventing Shaken Baby Syndrome and Abusive Head Trauma;

11. Recognizing and responding to injuries and emergencies, including the prevention of and response to emergencies due to food-related allergies and other allergic reactions; and

12. Including children with special needs in the center's program.

(b) Orientation training as specified in (a) above may be included for six of the required hours of staff development specified in (c) and (d) below.

(c) The center shall ensure that all staff members who work at the center complete 12 hours of continuing staff development each year.

(d) In lieu of the child care staff development specified in (b) above, the director, head teacher(s), group teacher(s), and program supervisor(s) shall each complete 20 hours of staff development each year. Recommended topics of training for these staff include:

1. Educational and physical activity
2. **S**pecial needs programming and program development;
3. Social-emotional and behavioral development for young children;
4. Legal issues, including ADA guidelines; and
5. Leadership and advocacy.

(e) Directors shall complete staff development in understanding licensing regulations as provided by the Office of Licensing within 90 days of hire. Such staff development may be included in the required 20 hours of staff development specified in (d) above.

(f) The staff development specified in (a) through (d) above shall:

1. Be clock hours of staff development;
2. Be related to the ages of the children served by each staff member;
3. Be provided either by the center or by another source such as a college or university, community or professional organization, professional consultant, State agency, or an instructor approved by the Instructor Approval System of Professional Impact of New Jersey; and
4. Be presented by persons with relevant expertise. The staff development may include materials approved by the center, such as printed materials, television broadcasts, audio-visual materials, or websites.

(g) The center shall maintain on file documentation of the date, time, topic, presenter, and attendance for all staff development and orientation completed by center staff members.

1. For staff development provided by the center, the center shall maintain on file documentation or a copy of all staff development materials used.
2. For staff development provided by another source, the center shall maintain on file documentation of the name of the person or organization that provided the staff development.
3. The center shall record each staff member's completion of staff development and orientation on the Staff Records Checklist, as specified in N.J.A.C. 3A:52-4.1(b).

3A:52-4.9 Special requirements to prevent child abuse and neglect

(a) The sponsor, sponsor representative, director, or any staff member shall verbally notify the State Central Registry Hotline (1-877 NJ ABUSE/1-877-652-2873) immediately whenever there is reasonable cause to believe that a child has been subjected to abuse or neglect by a staff member, or any other adult, pursuant to N.J.S.A. 9:6-8.9, 8.10, 8.13 and 8.14.

(b) In addition to the reporting requirements specified in (a) above, the sponsor, sponsor representative, director, or any staff member shall advise the parent(s) of the occurrence of any unusual incident(s) that occurred at the center and that might indicate possible abuse or neglect involving the child. Such notification shall be made on the same day on which the incident occurred. Such incidents may include, but are not limited to, unusual sexual activity; violent or destructive behavior; withdrawal or passivity; or significant change(s) in the child's personality, behavior or habits. The center shall maintain on file a record of such incidents and documentation that parents have been informed of them.

(c) The Department, during the course of investigating an allegation of child abuse or neglect, may determine that corrective action is necessary to protect the children whenever:

1. The sponsor, sponsor representative, director, or staff member has been found by the Department's Institutional Abuse Investigation Unit (IAIU) to pose a risk of harm to children;

2. The sponsor, sponsor representative, director, or staff member has committed an act of child abuse or neglect, as substantiated by the IAIU; or

3. The sponsor, sponsor representative, director, or staff member has been convicted of such acts.

(d) Whenever the Department makes a determination that corrective action is necessary to protect the children, the sponsor or sponsor representative shall carry out the Department's recommendation for corrective action. Such corrective action may include, but not be limited to:

1. Removal or suspension of the affected sponsor, sponsor representative, director, or staff member(s) from the center or reassignment to other duties that do not involve contact with the children; or

2. When the sponsor, sponsor representative, director, or staff member resides at the facility where the center is located, removal of the affected employee from the premises for a period of time extending from one hour prior to the arrival of the children until one hour after the children have left.

(e) Such suspension, removal, or reassignment, as specified in (d)1 and 2 above, shall remain in effect until the results of the Department's investigation have been determined and a final decision in the matter has been rendered by the Office of Licensing.

(f) If an allegation of child abuse or neglect is substantiated against a staff member, the sponsor or sponsor representative shall immediately terminate the staff member’s employment at the center. If an allegation of child abuse or neglect is substantiated against the sponsor or sponsor representative, the Department shall revoke or refuse to renew the license or Certificate of Life/Safety Approval, as applicable.

3A:52-4.10 Child Abuse Record Information background check procedures

(a) As a condition of securing a new or renewal license or Certificate of Life/Safety Approval, the sponsor or sponsor representative shall provide for himself or herself, and shall obtain from all staff members who are or will be working at the center on a regularly scheduled basis, written consent for the Department to conduct a Child Abuse Record

Information (CARI) background check to determine whether an incident of child abuse or neglect has been substantiated against any such person.

1. The sponsor or sponsor representative, and each staff member shall complete a signed consent form provided by the Department that indicates the identifying information necessary to conduct a CARI background check, including the person's name, address, date of birth, sex, race, and Social Security number. Pursuant to the Federal Privacy Act of 1974 (P.L. 93-579), the Department shall advise each such person that the disclosure of his or her Social Security number is voluntary, and that the Social Security number will only be used for the purpose of conducting a CARI background check.

2. If a staff member refuses to consent to a CARI background check, the sponsor or sponsor representative shall immediately terminate the staff member's employment at the center.

3. If the sponsor or sponsor representative refuses to consent to a CARI background check, the Department shall deny the application or suspend, revoke, or refuse to renew the license or Certificate of Life/Safety Approval, as applicable. The sponsor or sponsor representative may appeal the denial, suspension, revocation, or refusal to renew to the Department, as specified in N.J.A.C. 3A:52-2.5.

4. When a person who is not required to complete a CARI background check is working with children at the center, the center shall ensure oversight of that person by another staff member and ensure that person is not left alone to supervise a child or group of children.

(b) When the center applies for a new or renewal license or Certificate of Life/Safety Approval, the sponsor or sponsor representative shall submit to the Department the completed CARI consent forms for all staff members who are or will be working at the center on a regularly scheduled basis.

1. Within two weeks after a new staff member begins working at the center, the sponsor or sponsor representative shall submit to the Department a completed CARI consent form for the new staff member.

2. Until the results of the CARI background check for a new staff member have been received from the Department, the center shall ensure oversight of the new staff member by another staff member, and ensure that person is not left alone to supervise a child or group of children.

(c) When the sponsor or sponsor representative submits the CARI consent forms to the Department, the sponsor or sponsor representative shall enclose payment of $10.00 for each CARI background check, in the form of a check or money order from the center made payable to "Treasurer, State of New Jersey." The center may use its own discretion in offering to pay or reimburse the staff member for the cost of the CARI background check.

(d) Upon receipt of the completed CARI consent forms and payment from the center, the Department shall conduct a search of its records for substantiated incidents of child abuse or neglect. The Department will consider incidents of child abuse or neglect that were substantiated on or after June 29, 1995, to ensure that the perpetrator has had an opportunity to appeal a substantiated finding of child abuse or neglect; except that the Department may consider substantiated incidents prior to that date if the Department, in its judgment, determines that the perpetrator poses a risk of harm to children in a child care center.

(e) Within 45 working days of receipt of the completed CARI consent forms and payment from the center, the Department shall inform the sponsor or sponsor representative in writing as to whether a substantiated incident of child abuse or neglect by the sponsor, sponsor representative, or a staff member has been found. If such an incident has been found, the Department shall inform the sponsor or sponsor representative in writing of the name of the perpetrator.

(f) If the CARI background check does not reveal any substantiated incident of child abuse or neglect by the sponsor, sponsor representative, or a staff member, the Department may issue or renew the regular license or Certificate of Life/Safety Approval, provided that all other applicable requirements of this chapter have been met.

(g) If the CARI background check reveals that an incident of child abuse or neglect has been substantiated against a staff member, the sponsor, or sponsor representative shall immediately terminate the staff member's employment at the center.

1. The sponsor or sponsor representative shall notify the staff member in writing that the termination of employment is based on a substantiated incident of child abuse or neglect.

2. If the incident was substantiated prior to June 29, 1995, the sponsor or sponsor representative shall notify the staff member in writing that the staff member may appeal the termination of employment to the Department.

(h) In keeping with the confidentiality provisions of N.J.S.A. 9:6-8.10a, the sponsor, sponsor representative, and all staff members shall keep all completed CARI consent forms and related correspondence confidential.

1. The center shall maintain the results of the CARI background checks and related correspondence on file in a confidential manner.

2. When a substantiated incident of child abuse or neglect by the sponsor, sponsor representative, or a staff member has been found by the Department, the sponsor, sponsor representative, and the staff member shall not disclose to any other person the identity of the perpetrator or any other information concerning the incident.

3A:52-4.11 Criminal History Record Information background check procedures

(a) As a condition of securing a license or Certificate of Life/Safety Approval, the sponsor or sponsor representative shall ensure that a Criminal History Record Information (CHRI) fingerprint background check is completed for himself or herself, and for all staff members at least 18 years of age who are or will be working at the center on a regularly-scheduled basis, to determine whether any such person has been convicted of a crime, as specified in P.L. 2000, c. 77 (N.J.S.A. 30:5B-6.10 to 6.17).

1. The sponsor or sponsor representative and each staff member shall complete the electronic fingerprinting process through the vendor authorized by the State to conduct CHRI background checks through the Division of State Police in the Department of Law and Public Safety and the Federal Bureau of Investigation.

2. The sponsor or sponsor representative and each staff member shall provide the identifying information and documentation to the State-authorized vendor as necessary to conduct a CHRI background check, including the individual's name, address, date of birth, place of birth, citizenship, sex, race, height, weight, hair color, eye color, Social Security number, and the center's license number.

3. If a staff member refuses to consent to a CHRI background check, the sponsor or sponsor representative shall immediately terminate the staff member's employment at the center.

4. If the sponsor or sponsor representative refuses to consent to a CHRI background check, the Department shall deny the application or suspend, revoke, or refuse to renew the license or Certificate of Life/Safety Approval, as applicable. The sponsor or sponsor representative may appeal the denial, suspension, revocation, or refusal to renew to the Department, as specified in N.J.A.C. 3A:52-2.5.

5. When a person who is not required to complete a CHRI background check is working with children at the center, the center shall ensure oversight of that person by another staff member and ensure that the person is not left alone to supervise a child or group of children.

(b) When the center applies for a new license or Certificate of Life/Safety Approval, the sponsor or sponsor representative shall ensure that each staff member at least 18 years of age who is or will be working at the center on a regularly scheduled basis completes the CHRI fingerprinting process specified in (a) above.

1. Within two weeks after a new staff member begins working at the center, the sponsor or sponsor representative shall ensure that the new staff member completes the CHRI fingerprinting process specified in (a) above.

2. Until the center receives the results of the CHRI background check for a new staff member from the Department of Human Services, the center shall ensure oversight of that person by another staff member and ensure that the person is not alone to supervise a child or group of children.

(c) An individual shall be permanently disqualified from employment at, or ownership or sponsorship of, a child care center if the CHRI background check for the individual reveals a record of conviction for any of the following crimes and offenses:

1. In New Jersey, any crime or disorderly persons offense as follows:

i. A crime against a child, including endangering the welfare of a child and child pornography, pursuant to N.J.S.A. 2C:24-4, and child molestation, as set forth in N.J.S.A. 2C:14-1 et seq.;

ii. Abuse, abandonment or neglect of a child, pursuant to N.J.S.A. 9:6-3;

iii. Endangering the welfare of an incompetent person, pursuant to N.J.S.A. 2C:24-7;

iv. Sexual assault, criminal sexual contact or lewdness, pursuant to N.J.S.A. 2C:14-2 through 14-4;

v. Murder, pursuant to N.J.S.A. 2C:11-3, or manslaughter, pursuant to N.J.S.A. 2C:11-4;

vi. Stalking, pursuant to P.L. 1992, c. 209 (N.J.S.A. 2C:12-10);

vii. Kidnapping and related offenses including criminal restraint, false imprisonment, interference with custody, criminal coercion, or enticing a child into a motor vehicle, structure or isolated area, pursuant to N.J.S.A. 2C:13-1 through 13-6;

viii. Arson, pursuant to N.J.S.A. 2C:17-1, or causing or risking widespread injury or damage which would constitute a crime of the second degree, pursuant to N.J.S.A. 2C:17-2;

ix. Terroristic threats, pursuant to N.J.S.A. 2C:12-3; or

x. An attempt or conspiracy to commit any of the crimes or offenses listed in (c)1i through ix above; or

2. In any other state or jurisdiction, any conduct which, if committed in New Jersey, would constitute any of the crimes or offenses described in (c)1 above.

(d) Upon receipt of the results of the CHRI background check from the Division of State Police and the Federal Bureau of Investigation, the Department shall inform the sponsor or sponsor representative and the staff member in writing as to whether any record of conviction by the sponsor, sponsor representative, or staff member has been found.

(e) If the CHRI background check does not reveal any record of conviction by the sponsor, sponsor representative, or a staff member, the Department may issue or renew the regular license or Certificate of Life/Safety Approval, provided that all other applicable requirements of this chapter have been met.

(f) If the CHRI background check reveals a record of conviction by the sponsor, sponsor representative, or a staff member, the Department shall inform the convicted individual of the opportunity to challenge the accuracy of the CHRI.

(g) If the CHRI background check reveals a record of conviction by a staff member for a crime or offense specified in (c) above, the sponsor or sponsor representative shall immediately terminate the staff member's employment at the center.

(h) If the CHRI background check reveals a record of conviction by the sponsor or sponsor representative for a crime or offense specified in (c) above, the Department shall deny the application or revoke or refuse to renew the license or Certificate of Life/Safety Approval, as applicable.

(i) If the CHRI background check reveals a record of conviction by the sponsor, sponsor representative**,** or a staff member for a crime or offense other than those specified in (c) above, the sponsor, sponsor representative, or staff member may be eligible for employment at, or ownership, or sponsorship of, a child care center if the Department determines that the person has affirmatively demonstrated to the Department clear and convincing evidence of rehabilitation.

1. In determining whether a person has affirmatively demonstrated rehabilitation, the Department shall consider the following factors:

i. The nature and responsibility of the position at the child care center which the convicted person would hold, has held or currently holds, as the case may be;

ii. The nature and seriousness of the offense;

iii. The circumstances under which the offense occurred;

iv. The date of the offense;

v. The age of the person when the offense was committed;

vi. Whether the offense was an isolated or repeated incident;

vii. Any social conditions that may have contributed to the offense; and

viii. Any evidence of rehabilitation, including good conduct in prison or in the community, counseling or psychiatric treatment received, acquisition of additional academic or vocational schooling, successful participation in correctional work-release programs, or the recommendation of those individuals who have had the person under their supervision.

2. The Department shall make the final determination regarding the employment of a sponsor, sponsor representative, or staff member with a criminal conviction.

(j) If the sponsor or sponsor representative has knowledge that criminal charges are pending against a staff member, the sponsor or sponsor representative shall promptly notify the Office of Licensing to determine whether any action concerning the staff member is necessary in order to ensure the safety of the children who attend the center.

(k) A center that has received an employment application from an individual or currently employs a staff member shall be immune from liability for acting upon or disclosing information about the staff member's disqualification or termination to another center seeking to employ that person, if the center has:

1. Received notice from the Department that the applicant or staff member, as applicable, has been determined by the Department to be disqualified from employment in a child care center pursuant to section 5 or 6 of P.L. 2000, c. 77 (N.J.S.A. 30:5B-6.14 or 6.15); or

2. Terminated the employment of a staff member because the person was disqualified from employment at the center on the basis of a conviction for a crime or offense pursuant to section 5 or 6 of P.L.2000, c. 77 (N.J.S.A. 30:5B-6.14 or 6.15) after commencing employment at the center.

(*l*) A center which acts upon or discloses information pursuant to (k) above shall be presumed to be acting in good faith unless it is shown by clear and convincing evidence that the center acted with actual malice toward the person who is the subject of the information.

SUBCHAPTER 5. PHYSICAL FACILITY REQUIREMENTS

3A:52-5.1 Applicability of requirements to programs operating in public school buildings

A child care center operated in a public school building concurrently used as a public school shall not be required to meet the requirements of this subchapter, other than N.J.A.C. 3A:52-5.3(i)5, unless otherwise required by law.

3A:52-5.2 State, county and municipal government physical facility requirements

(a) A person seeking a license or a Certificate of Life/Safety Approval to operate a center shall comply with all applicable provisions of the New Jersey Uniform Construction Code, as specified in N.J.A.C. 5:23 (hereinafter referred to as the "NJUCC").

1. For newly-constructed buildings, for existing buildings whose construction code group classification would change from that which it had been, or for existing buildings that require major alteration or renovation, the center shall obtain a Certificate of Occupancy (CO) issued by the municipality in which it is located, reflecting the center's compliance with the provisions of the NJUCC, and submit a copy of the CO to the Office of Licensing, for one of the following group classifications**:**

i. E (Educational) for buildings accommodating children 2 ½ years of age and older and having a total occupancy of six or more children;

ii. I-4 (Institutional) for buildings accommodating one or more children less than 2 ½ years of age; or

iii. A-3 (Assembly) or one of the group classifications specified in (a)1i or ii above for buildings accommodating school-age child care programs only.

2. Plan reviews for centers to be located in newly-constructed buildings shall be submitted as follows:

i. In addition to submitting preliminary and final architectural drawings to the local construction official, a sponsor or sponsor representative that plans to construct a new or renovate an existing building for use as a center shall submit preliminary or final architectural drawings to the Office of Licensing for review and approval prior to beginning construction.

ii. The sponsor or sponsor representative shall submit to the Office of Licensing revised final architectural drawings containing all Office of Licensing-required items listed in the plan review, if any, and secure final approval from the Office of Licensing prior to beginning construction.

3. For buildings constructed after the adoption of the NJUCC (1977), whose construction code group classification is already E, I-2, I-4, A-3, or A-4, and that have not had major alterations or renovations since receipt of the CO, the center shall obtain the CO issued by the municipality in which it is located at the time the building was originally constructed or approved for use in the NJUCC's E, I-2, I-4, A-3, or A-4 group classification. The center shall submit a copy of the building's CO to the Office of Licensing.

4. For existing buildings whose use prior to the adoption of the NJUCC (before 1977) was and continues to be for a center and that have not had major alterations or renovations, the center shall obtain a Certificate of Continued Occupancy (CCO) issued by the municipality in which it is located, reflecting the building's compliance with provisions of

the municipality's construction code requirements that were in effect at the time it was originally constructed or converted for use as a center. The center shall submit a copy of the building's CCO and the center's current fire safety inspection certificate to the Office of Licensing.

5. The center shall be permitted to obtain a valid fire safety inspection certificate issued by the municipality in which it is located, based on a fire inspection conducted within the preceding 12 months, and submit a copy of the certificate to the Office of Licensing in lieu of a CO or CCO, if the center serves only children 2 ½ years of age or older and is located in a public school building that is used as a public school.

6. The center shall obtain a new CO issued by the local municipality in which the center is located, and submit a copy to the Office of Licensing, reflecting the building's compliance with provisions of the applicable NJUCC group classification, whenever the center:

i. Changes the building's group classification to one other than the one prescribed on its original CO;

ii. Makes a major alteration or renovation, as defined by the NJUCC, of the building or premises in which the center is located;

iii. Increases the floor area or the number of stories to the building or premises in which the center is located; or

iv. Relocates to another site.

7. Whenever a municipality grants to a center a written variation(s) from any of the requirements of the NJUCC, the Office of Licensing may accept such variation(s) as meeting the applicable requirement(s) of this chapter.

i. If the Office of Licensing does not accept the variation, the non-acceptance shall be based on the best interests of the children in the center, and shall include consideration for their health and safety. The non-acceptance shall be based on the requirements of this chapter only, and shall not preclude the municipality from continuing to grant the variation.

ii. If the center disagrees with the Office of Licensing, the center may seek a hearing in accordance with N.J.A.C. 3A:52-2.5(a) and the provisions of the Administrative Procedure Act, N.J.S.A. 52:14B-1, as implemented by the Uniform Administrative Procedure Rules, N.J.A.C. 1:1.

8. The center shall obtain a Life Hazard Use Registration certificate applicable to the center's licensed capacity and ages served pursuant to the Uniform Fire Safety Act, N.J.S.A. 52:27D-192 et seq. The center shall post this document in a prominent location within the center.

(b) An applicant seeking a license or a Certificate of Life/Safety Approval to operate a center shall comply with all applicable provisions of the New Jersey Uniform Fire Code, as specified in N.J.A.C. 5:70 and hereinafter referred to as the NJUFC. The center shall obtain the building's fire safety inspection certificate issued by the municipality in which it is located, based on a fire inspection conducted within the preceding 12 months, reflecting the center's compliance with all applicable provisions of the NJUFC. The center shall maintain on file the building's fire safety inspection certificate.

(c) If the center prepares meals, the center shall obtain a satisfactory Sanitary Inspection Certificate, as specified in N.J.A.C. 8:24, indicating that the kitchen is in compliance with the applicable requirements of the State Sanitary Code. The center shall maintain on file the Sanitary Inspection Certificate.

(d) An applicant seeking the renewal of a license or of a Certificate of Life/Safety Approval to continue operating a center shall obtain and maintain on file a fire safety inspection certificate for the building based on a fire inspection conducted within the preceding 12 months. If the center prepares meals, the applicant seeking renewal shall obtain and maintain on file a satisfactory Sanitary Inspection Certificate, as specified in N.J.A.C. 8:24, indicating that the kitchen is in compliance with the applicable requirements of the State Sanitary Code, based on a sanitary inspection conducted within the preceding 12 months.

(e) A center that plans to locate or is already located in a hospital or other health care facility, as defined in the Health Care Facilities Planning Act, N.J.S.A. 26:2H-1 et seq., shall obtain a letter from the Department of Health indicating that Department's approval. The center shall submit a copy of the approval letter to the Office of Licensing.

3A:52-5.3. Physical plant requirements for all centers

(a) Indoor maintenance and sanitation requirements are as follows:

1. The center shall be free of moisture resulting from water leaks or seepage.
2. Floors, carpeting, walls, window coverings, ceilings, and other surfaces shall be kept clean and in good repair.
3. Stairways shall be free of tripping hazards, such as toys, boxes, loose steps, uneven treads, torn carpeting, raised strips, or uneven risers.
4. Carpeting shall be securely fastened to the floor.
5. Garbage receptacles shall be:
   i. Made of durable, leak-proof and nonabsorbent materials;
   ii. Covered in a secure manner;
   iii. Emptied to the outdoor garbage receptacle when filled; and
   iv. Maintained in a sanitary manner.
6. Food waste receptacles shall be lined and maintained in clean and sanitary condition.
7. The center shall be free of rodent or insect infestation and shall take immediate action to remove any infestation that may occur. The center shall maintain on file a record documenting the use of extermination services.
8. Pesticides for indoor and outdoor use shall be used in accordance with the manufacturer's directions and in keeping with the applicable provisions specified in N.J.A.C. 7:30-10, Pesticide Control Code.
   i. No pesticides shall be applied in or around a child care center during operating hours.
   ii. Before applying pesticides, all toys and non-permanent play equipment shall be removed from outdoor and indoor play areas.
9. Toilets, wash basins, kitchen sinks, and other plumbing shall be maintained in good operating and sanitary condition.
10. All corrosive agents, insecticides, bleaches, detergents, polishes, any products under pressure in an aerosol spray can, and any toxic substance shall be stored in a locked cabinet or in an enclosure located in an area not accessible to the children.
11. All windows and other glass surfaces that are not made of safety glass and that are located within 36 inches above the floor shall have protective guards.

12. Install window guards, with approval of the local fire official, or provide an alternative method to ensure that children cannot fall out of windows.

13. The center shall ensure that window blind cords and other cords and ropes that present risk of harm are inaccessible to children.

14. All balconies, rooftops, verandas, and all floor levels used by children that are above the first floor and subject the children to an open drop or atrium shall be protected by barriers consisting of safety glass, Plexiglas, or any other materials approved by the Office of Licensing. Such barriers shall extend at least five feet above the floor level.

15. Ventilation outlets shall be clean and free from obstructions, and filters shall be replaced when saturated.

16. Walls shall be painted or otherwise covered whenever there is evidence of:

i. Excessive peeling or chipped paint; or

ii. Heavily soiled conditions.

17. All televisions and computers shall be secured on a stable surface and shelving shall be secured and not be overloaded.

18. Ensure that microwave ovens, toaster ovens, and other portable devices used to heat or prepare food are out of children's reach, secured on a stable surface, and not in use when children are in the area in order to ensure the safety of children.

19. The center shall test for the presence of radon gas in each classroom on the lowest floor level used by children at least once every five years and shall post the test results in a prominent location in all buildings at the center, as specified in N.J.S.A. 30:5B-5.2.

20. The center shall comply with the provisions specified in P.L. 1999, c. 362 (N.J.S.A. 30:5B-5.5) requiring reports of drinking water tests to be posted in all buildings at the center when received from a water supply company or prepared by the center, for private wells and other non-public water sources.

21. The center shall ensure all guardrails accessible to children are no more than four inches apart or are otherwise protected to prevent head entrapment.

(b) Outdoor maintenance and sanitation requirements are as follows:

1. The building, land, walkways, and outdoor play area shall be free from hazards to the health, safety or well-being of the children.

2. The outdoor play area shall be graded or provided with drains to dispose of surface water.

3. The building structure shall be maintained to prevent:

i. Water from entering;

ii. Excessive drafts or heat loss; and

iii. Infestation from rodents and insects.

4. The railings of balconies, landings, porches, or steps shall be maintained in safe condition.

5. Garbage receptacles shall be:

i. Made of durable, leak-proof and nonabsorbent materials;

ii. Covered in a secure manner and located in an outdoor area; and

iii. Maintained in a sanitary manner.

6. Centers that provide outdoor space shall maintain all fencing in proper condition.

7. The center shall comply with the Playground Safety Subcode of the New Jersey Uniform Construction Code, as specified in N.J.A.C. 5:23-11.

i. Centers that take children to a community playground shall ensure that the playground surfacing and all other elements comply with the Playground Safety Subcode before being used by the children.

(c) Lighting requirements are as follows:

1. All fluorescent tubes and incandescent light bulbs shall have protective covers or shields.

2. During program activities, at least 20 foot-candles of natural or artificial light shall be provided in all rooms used by the children. This illumination shall be measured three feet above the floor at the farthest point from the light source.

3. Parking areas, pedestrian walkways, or other exterior portions of the premises subject to use by center occupants at night shall be illuminated to provide safe entrance to and egress from the center.

(d) Heating requirements are as follows:

1. A minimum temperature of 68 degrees Fahrenheit shall be maintained in all areas used by children, including, but not limited to, classrooms and bathrooms.

2. Steam and hot water pipes and radiators shall be protected by screens, guards, insulation, or any other suitable, non-combustible protective device.

3. The center shall not use portable liquid fuel-burning or wood-burning heating appliances or electric space heaters.

(e) All fans that are accessible to the children shall have a grille, screen, mesh, or other protective covering.

(f) Toilet facility requirements are as follows:

1. A supply of soap, toilet paper, and individual hand towels or disposable paper towels shall be provided.

2. Mirrors, dispensers, and other equipment shall be fastened securely.

3. Platforms shall be available as appropriate for use by the children when adult size toilets, sinks, or urinals are used by the children.

(g) A center utilizing a kitchen facility or food preparation area shall ensure that the cooking equipment and kitchen facility are kept in clean and sanitary condition and are operated in compliance with applicable provisions of the State Sanitary Code, as specified in N.J.A.C. 8:24.

(h) Lead paint precautions are as follows:

1. The center shall be free from lead paint hazards.

2. The center shall comply with the lead paint inspection requirements specified in (h)3 below, unless the center:

i. Is located in a building constructed after 1978;

ii. Submits documentation to the Office of Licensing of a previous lead paint inspection conducted by a Lead Inspector/Risk Assessor, who is certified and employed as specified in (h)3 below, indicating the center is free of lead-based paint hazards; or

iii. Submits documentation to the Office of Licensing and the local department of health of:

(1) A lead paint inspection and risk assessment conducted by a Lead Inspector/Risk Assessor, who is certified and employed as specified in (h)3 below, within the previous 12 months indicating the presence of lead; and

(2) A lead paint risk management plan currently in progress at the center.

3. The center shall ensure that a lead paint inspection of all painted surfaces of the center is conducted by a Lead Inspector/Risk Assessor, who is certified by the New Jersey Department of Community Affairs (DCA) and employed by either a public health agency or a lead evaluation contractor certified by DCA, as specified in N.J.A.C. 5:17.

i. If the lead paint inspection indicates the center is free of lead-based paint hazards, the center shall submit documentation of the inspection results to the Office of Licensing and the local department of health.

ii. If the lead paint inspection indicates the presence of lead, the center shall ensure that a lead paint risk assessment of the center is conducted by a Lead Inspector/Risk Assessor, who is certified and employed as specified in (h)3 above.

iii. The center shall submit documentation of the risk assessment results to the Office of Licensing and the local department of health.

4. If a lead paint risk assessment indicates the presence of a lead hazard, the center shall:

i. Ensure that all lead hazards are remediated pursuant to N.J.A.C. 5:17 and 5:23 by a Lead Abatement Contractor who is certified and employed as specified in (h)3 above;

ii. Submit to the Office of Licensing and the local department of health a certificate of lead abatement issued by the local construction official, or other documentation as appropriate, reflecting that appropriate remedial action to remediate the lead hazard has been completed; and

iii. Inform the parents of all enrolled children that a lead paint hazard has been found at the center and will be or has been remediated, as applicable.

5. If any area of the center is renovated or damaged after a lead paint risk assessment has been conducted, the center shall:

i. Ensure that an additional risk assessment is conducted by a Lead Inspector/Risk Assessor who is certified and employed as specified in (h)3 above; and

ii. Submit the results of the additional risk assessment to the Office of Licensing and the local department of health.

6. The center shall follow the recommendations of the local department of health for enclosure, removal or other appropriate action to abate lead hazards, and shall permit the local department of health to conduct follow-up inspections to ensure compliance with State statutes governing lead paint hazards.

7. If a previous lead paint inspection indicates the presence of lead, or a lead paint risk management plan is in progress at the center, the center shall:

i. Ensure that a lead paint risk assessment is conducted by a Lead Inspector/Risk Assessor who is certified and employed as specified in (h)3 above, upon renewal of the center’s license; and

ii. Submit the results of the risk assessment to the Office of Licensing and the local department of health.

(i) Environmental condition precautions are as follows:

1. At the time of the initial application, any renewal application, relocation of an existing licensed center and, in the discretion of the Office of Licensing, any other time, the applicant or facility operator shall submit a written certification to the Office of Licensing indicating whether the building has ever housed a use that was classified under the Uniform Construction Code, N.J.A.C. 5:23, as any of the following:

i. Group F - factory/industrial;

ii. Group H - high hazard;

iii. Group S - storage;

iv. Group B - dry cleaners or nail salons;

v. Group M - gas stations; or

vi. Group A - funeral home.

2. For those buildings that predate the Uniform Construction Code, the facility operator shall at minimum, conduct a Preliminary Assessment in accordance with the Department of Environmental Protection's Technical Requirements for Site Remediation (N.J.A.C. 7:26E) to determine whether the building ever housed a use that would have been classified as any of those uses had the Uniform Construction Code been in effect.

3. In the event that the building housed a use that was or would have been classified as any of those uses listed in (i)1 above, the facility operator shall certify in writing to the Office of Licensing that:

i. The site of the center complies with the Madden legislation (P.L. 2007 c. 1), the Site Remediation Reform Act (N.J.S.A. 58:10C-1 et seq.), the Technical Requirements for Site Remediation (N.J.A.C. 7:26E), and the Department of Environmental Protection's Guidance Document for Environmental Guidance for All Child Care Facilities and Education Institutions, incorporated by reference, as amended and supplemented, which can be found at http://nj.gov/dep/srp/guidance;

ii. The facility operator has contacted the Department of Environmental Protection (DEP) to determine what further steps, if any, are necessary to address the risks posed by the prior historical use, and the facility operator has complied with all recommended corrective actions;

iii. He or she has conducted an Indoor Environmental Health Assessment (IEHA) that has been performed by a Licensed Indoor Environmental Consultant in accordance with the Department of Health rules (N.J.A.C. 8:50); and

iv. He or she has submitted the IEHA to the Department of Health for review and evaluation of the indoor environmental conditions in the building where the center is located.

4. Paragraphs (i)1 through 3 above shall not apply to any centers covered by N.J.A.C. 3A:52-2.3(e).

5. At the time of the initial application, any renewal application, relocation of an existing licensed center and, in the discretion of the Office of Licensing, any other time, the applicant or facility operator shall certify in writing that the center provides a potable water supply provided by a public community water system.

i. If the facility is supplied by a public community water system, the applicant or facility operator shall provide documentation of water testing conducted by a laboratory certified by the Department of Environmental Protection for water testing for lead and copper from all faucets and other sources used for drinking water or food preparation and at least 50 percent of all indoor water faucets utilized by the center.

ii. If the results reveal elevated levels of lead or copper as defined by the New Jersey Department of Environmental Protection, Bureau of Safe Drinking Water, which pose risk of harm to children, the center shall:

(1) Immediately discontinue use of all drinking water sources in the building;

(2) Provide bottled water for drinking;

(3) Provide bottled water for food preparation with approval from the local health official; and

(4) Notify parents of the children in attendance at the center.

iii. If the facility or site is not provided a potable water supply by a public community water system, the applicant shall provide potable water sampling results demonstrating compliance with maximum contaminant levels for all contaminants required

to be tested pursuant to N.J.A.C. 7:10-5 for public non-transient, non-community (NTNC) water systems, including radiological contaminants, regardless of whether they meet the definition of NTNC systems as defined at N.J.A.C. 7:10-1.3. This sampling shall have been conducted within three years of the date of application submission, except nitrates and coliform, for which the sampling shall have been conducted within 90 days of submitting the application.

6. At the time of the initial application, any renewal application, relocation of an existing licensed center and, in the discretion of the Office of Licensing, any other time, the applicant or facility operator shall certify in writing that the center complies with all existing Department of Children and Families regulatory requirements for child care centers with respect to radon, asbestos, and lead listed in (a)19 and (h) above and (j) below.

7. At the time of the initial application, any renewal application, relocation of an existing licensed center and, in the discretion of the Office of Licensing, any other time, the facility operator shall submit to the Office of Licensing a No Further Action letter, Child Care Facility Approval letter, RESPONSE Action Outcome letter, or other approval, which indicates that no further remediation is needed for the site from the Department of Environmental Protection, which indicates that no further remediation is needed for the site on which the center is located.

8. At the time of the initial application, any renewal application, relocation of an existing licensed center, and, as determined by the Office of Licensing, on a case-by-case basis, the facility operator shall submit to the Office of Licensing a Safe Building Interior Certification or other approval issued by the Department of Health that indicates that no further remediation is needed for the interior of the building in which the center is located.

9. The Office of Licensing shall not issue licenses or renewals to child care centers that are co-located in a building or other structure that contains a dry cleaner or nail salon unless the applicant obtains indoor air sampling that demonstrates that there is no impact to the child care center.

(j) Asbestos precautions are as follows:

1. The building shall comply with the applicable provisions of the Asbestos Hazard Abatement Subcode of the NJUCC, as specified in N.J.A.C. 5:23-8, as well as the NJDEP, as specified in N.J.A.C. 7:27-17.2.

2. An inspection for asbestos containing materials shall be conducted as part of the Indoor Environmental Health Assessment. If the New Jersey Department of Health determines that corrective action must be taken to minimize exposure potential, the sponsor or sponsor representative shall follow the recommendation of that department for enclosure, removal, or other appropriate action to remove the threat or risk of asbestos contamination, as specified in N.J.A.C. 5:23-8.

(k) Swimming pool requirements are as follows:

1. Pools that are at least 24 inches in depth shall be defined as swimming pools and subject to the requirements specified in (k)2 below.

2. The center shall ensure that any swimming pool or natural bathing place used by the children complies with applicable provisions of the Public Recreational Bathing Rules, as specified in N.J.A.C. 8:26, and with applicable provisions of the Building Subcode and Barrier-free Subcode of the NJUCC, as specified in N.J.A.C. 5:23.

3. The center shall ensure that the children using swimming pools or natural bathing facilities are supervised in accordance with applicable provisions of the New Jersey Youth Camp Safety Act rules, as specified in N.J.A.C. 8:25.

4. If a child defecates in the swimming pool, all solid wastes shall be removed and the pool shall be super-chlorinated and not used until the chlorine level returns to levels identified as acceptable in the Public Recreational Bathing Rules, N.J.A.C. 8:26.

5. Wading pools that are 24 inches or less, are filled as needed, are portable, and do not have a filtration system are prohibited.

(*l*) Emergency procedure requirements are as follows:

1. The center shall prepare written emergency procedures delineating:

i. The location of the first aid kit and any additional first aid supplies;

ii. The name, address and telephone number of the physician retained by the center or of the health facility to be used in emergencies;

iii. An alternate indoor location that operates during the same operating hours as the center. The center shall:

(1) Select an alternate indoor location within safe walking distance; or

(2) Develop a written procedure for obtaining emergency transportation to the alternate location;

iv. The hospital or clinic to which injured or ill children will be taken;

v. The telephone numbers for obtaining police, fire, ambulance and poison control services, including the National Poison Emergency Hotline at (800) 222-1222;

vi. The location of written authorization from parent(s) for emergency medical care for each child;

vii. A diagram showing how the center is to be evacuated in case of emergency from each classroom and the outdoor play area;

viii. The location of fire alarms and fire extinguishers; and

ix. Procedures for ensuring children's safety and communicating with parents in the event of evacuation, lockdown, natural or civil disaster, and other emergencies. The procedures shall indicate:

(1) The plan for informing parents of their children's whereabouts; and

(2) The local law enforcement agency or emergency management office that has been notified of the center's identifying information, as specified in (l)3 below.

2. The emergency procedures shall be readily accessible in a designated location within the center.

3. The center shall ensure that the appropriate local law enforcement agency or emergency management office is notified of:

i. The center's name and location;

ii. The number, ages, and special needs of children enrolled;

iii. The number of staff;

iv. The need for emergency transportation;

v. The location to which children will be evacuated;

vi. The plan for a lockdown; and

vii. The plan for reuniting children with their parents.

4. The center shall conduct two lockdown drills per year and maintain on file a record of each lockdown drill. The center shall ensure that lockdown drills are conducted during each session provided at the center.

5. Ensure all locking devices, including those used for lockdown procedures:

i. Are acceptable for use by the local fire official; and

ii. Do not pose a risk of harm to the children; and

6. All staff shall be trained on the use of these devices.

(m) Supplemental evacuation requirements are as follows:

1. Children under 2½ years of age shall be limited to the floor level of exit discharge in all buildings for centers that are new and relocating centers licensed after September 1, 2013. Centers that are permitted to have children under the age of 2½ to occupy a floor above or below the level of exit discharge shall be required to provide additional staff in order to ensure safe and prompt evacuation.

2. Cribs, beds, playpens, and cots used for rest or sleep shall be arranged so as to provide access to a three-foot-wide aisle that leads to an unobstructed exit.

3. All centers providing care for non-ambulatory infants and toddlers shall have one evacuation crib for every four non-ambulatory children by March 6, 2018.

4. To assure the safe and timely evacuation of the children from the center during a fire or other emergency, centers required to secure a Certificate of Life/Safety Approval shall meet the minimum staff/child ratio requirements, as specified in N.J.A.C. 3A:52-4.3(c).

(n) Fire prevention requirements are as follows:

1. The center shall conduct fire drills at least once a month, as specified in the NJUFC. The center shall ensure that fire drills are conducted during each session provided at the center and that one fire drill per year is conducted during nap time, if applicable.

2. The center shall ensure that all children present are evacuated from the building within three minutes during each fire drill.

3. The center shall maintain on file a record of each fire drill, as specified in the NJUFC, which record shall include:

i. The date and time of day of the drill;

ii. The weather condition at the time of evacuation;

iii. The number of participating children and staff members; and

iv. The total amount of time taken to evacuate the center.

4. All fire extinguishers shall be visually inspected once a month, and serviced and tagged at least once a year and recharged, if necessary, as specified in the NJUFC.

(o) First aid requirements are as follows:

1. At least two staff members who have current certified basic knowledge of first aid principles and cardiopulmonary resuscitation (CPR), as defined by a recognized health organization (such as the American Red Cross), shall be in the center at all times when enrolled children are present.

2. The first aid and CPR training shall include a hands-on training component in addition to any online training coursework.

3. The following equipment shall be placed in a location that is convenient and accessible to staff members:

i. A standard first aid kit, which is fully re-stocked within 24 hours of use; and

ii. The American Red Cross First Aid Manual or its equivalent.

(p) Play equipment, materials, and furniture for indoor and outdoor use shall be of sturdy and safe construction, non-toxic, free of hazards**,** and used in accordance with the manufacturer's instructions. The center may not use play equipment intended for outdoor use indoors.

(q) Space and room requirements are as follows:

1. All space and rooms within the center to be used by children shall be inspected and approved by the Office of Licensing prior to their use. In making its determination, the

Office of Licensing shall consider whether the space is too far removed, remote, or isolated from other areas of the center to be used by children.

i. For those rooms or areas that are too far removed, remote, or isolated from other centrally located rooms or areas of the center, the Office of Licensing may require the use of additional staff members, above those required for staff/child ratios, before granting approval.

ii. Rooms or areas of the center that are not Office of Licensing-approved for use by children shall be made inaccessible to children.

2. At no time shall a center**:**

i. **Allow** more children in attendance than the **licensed** capacity as specified on the license or the Certificate of Life/Safety Approval;

ii. Allow more children in attendance than the licensed room capacity;

iii. Operate in violation of the written conditions on its license or Certificate of Life/Safety Approval including, but not limited to, capacity or age restrictions for specific classrooms.

3. Indoor space requirements for play rooms and sleep rooms are as follows:

i. There shall be a minimum of 30 square feet of usable activity indoor floor space for each child in centers that:

(1) Began operating prior to July 1, 1989; or

(2) Began operating on or after July 1, 1989 and serve fewer than 16 children.

ii. There shall be a minimum of 35 square feet of usable activity indoor floor space for each child in centers that began operating on or after July 1, 1989 and serve 16 or more children.

iii. The minimum square footage of usable activity indoor floor space shall be determined by excluding the space used in or by hallways, toilet facilities, offices, storage rooms, staff rooms, furnace rooms, kitchen areas, lockers, closets, and other stationary equipment or areas that children do not use for sleep or play.

iv. Centers serving sick children shall comply with the variation provisions on determining net indoor floor space per child, as specified in N.J.A.C. 3A:52-8.4(a).

v. The center shall identify all rooms of the center that have been approved by the Office of Licensing. This identification shall consist of numbers, letters, names or any other means of identification and shall be located either inside or directly outside each room.

4. Separate room or area requirements for children who become ill are as follows:

i. There shall be a room, section of a room, or a separate area in the center to which children who are exhibiting those illnesses, symptoms of illness, and diseases specified in N.J.A.C. 3A:52-7.1(c) shall be taken and where they shall be cared for until they can return home, be suitably cared for elsewhere, or be diagnosed as posing no health risk to themselves or others.

ii. The separate room, section**,** or area shall be furnished with sleeping equipment and sheets, blankets or other coverings.

iii. Centers serving only sick children shall comply with the variation provision for separating ill children, as specified in N.J.A.C. 3A:52-8.4(b) and (c).

(r) The center shall take any steps required by the Office of Licensing to correct conditions in the building or center that may endanger the health, safety, and well-being of the children served.

3A:52-5.4 Additional physical plant requirements for early childhood programs

(a) For early childhood programs, the following shall apply:

1. All electrical outlets that are accessible to the children shall have protective covers.

2. All lally columns in areas used by the children shall have protective padding placed around them from the floor to a height of at least 48 inches.

3. Crawl spaces, attic spaces, and all doors and windows used for natural ventilation shall be provided with insect screening.

4. A supply of hot tap water not exceeding 110 degrees Fahrenheit and cold running water shall be provided.

5. Toilet and sink facility requirements are as follows:

i. The minimum number of toilets and sinks required in the center shall be determined as specified in the Plumbing Subcode of the NJUCC.

ii. At least one toilet facility and sink shall be located on each floor level used by children in centers that began operating after March 21, 2005.

iii. For each classroom used by children under 2 1/2 years of age, a minimum of one sink shall be located in the classroom for newly-constructed centers and expansions.

6. Kitchen facility requirements are as follows:

i. The kitchen facility or food preparation area shall be separated from other areas of the center by a door, gate, screen, or other barrier to prevent accidental access by children.

ii. The kitchen may be used for children's program cooking activities only when it is not being used for preparation of meals for consumption by enrolled children.

7. Outdoor space requirements for children over the age of 10 months are as follows:

i. For children in attendance for three or more consecutive hours, existing center(s) shall provide a minimum of 150 square feet of net outdoor space. When more than five children are using such a space at one time, there shall be 30 square feet of net outdoor space for each additional child in addition to the required minimum of 150 square feet. New and relocating centers licensed on or after September 1, 2013, shall provide a minimum of 350 square feet of net outdoor space. When more than 10 children are using such a space at one time, there shall be an additional 35 square feet of net outdoor space for each additional child in addition to the required minimum of 350 square feet.

ii. The outdoor area for new and relocating centers licensed on or after September 1, 2013, shall be in close proximity and safe walking route of the center and available for use by the children.

iii. Outdoor areas located near or adjacent to hazardous areas determined by the Office of Licensing to be unsafe (including, but not limited to, streets, roads, driveways, parking lots, railroad tracks, swimming pools, rivers, streams, steep grades, cliffs, open pits, high voltage boosters, or propane gas tanks) shall be fenced or otherwise protected by a natural or man-made barrier or enclosure.

iv. The center shall not be required to meet the outdoor space requirement in (a)7i above, if the center can establish, to the satisfaction of the Office of Licensing, that:

(1) Compliance with the requirement is impossible at the proposed center site or an alternative site, expected to serve the same geographic location;

(2) There is a compelling need, as determined by the OOL on a case-by-case basis, for additional child care services in the local area; and

(3) There is a designated indoor active play area not used toward the center's licensed capacity that provides 35 square feet per child for at least 25 percent of the licensed capacity of the facility with a minimum of 350 square feet;

v. Centers serving only sick children shall comply with the variation provisions for outdoor space, as specified in N.J.A.C. 3A:52-8.4(f)1.

3A:52-5.5 Additional physical plant requirements for school-age child care programs

(a) For school-age child care programs, the following shall apply:

1. All lally columns in areas used by the children shall have protective padding around them from the floor to a height of at least 72 inches.

2. For centers that serve food, crawl spaces, attic spaces, and all doors and windows used for natural ventilation shall be provided with insect screening.

3. A supply of hot tap water not exceeding 120 degrees Fahrenheit and cold running water shall be provided.

4. Toilet facility requirements are as follows:

i. Children shall be afforded privacy, appropriate to their age and development, when toileting.

ii. The center shall have one toilet and one sink for every 25 children, as specified in the Plumbing Subcode of the NJUCC for the E group.

iii. Toilet facilities and sinks shall be located no more than one floor above or below the floor levels used by the children.

3A:52-5.6. Special physical facility and monitoring requirements to prevent child abuse or neglect

(a) At least five foot-candles of natural or artificial light shall be provided in all rooms used by children during naptime. The illumination shall be measured three feet above the floor at the farthest point from the light source.

(b) Doors in all interior rooms designated for use by children shall remain unlocked.

(c) For rooms and areas used by children, except as specified in (e) below, the following monitoring requirements shall apply:

1. The center shall equip every room or area designated for use by children, except for kitchen and toilet facilities, with one of the following options in order to promote maximum visibility and audibility:

i. A centrally supervised audio or visual monitoring system;

ii. Uncovered and unobstructed glass panels or two-way mirrors that comprise at least 10 percent of the square footage of one interior wall, provided that such panels or mirrors are not in conflict with applicable provisions of the NJUCC or the NJUFC;

iii. Security mirror(s) in hallways that reflect activities in the room(s) used by children;

iv. At least one interior door leading to every room designated for use by children, which shall meet one of the following conditions, provided that such conditions are not in conflict with applicable provisions of the NJUCC and the NJUFC:

(1) Be left open;
(2) Have uncovered and unobstructed windows or cutouts;
(3) Be a dutch door variety, with the top half open; or
(4) Be removed; or

v. Any other Office of Licensing-approved monitoring system or equipment that provides equivalent visibility and audibility.

(d) Toilet facility requirements are as follows:

1. For existing centers that have only one toilet facility, or for existing centers that have more than one toilet facility, but where all toilets have been counted in determining the maximum number of children who can be served per session, the center shall ensure that staff members and other adults who use the toilet facility for their own toileting needs do so only:

i. When children are not in it; and

ii. After the staff member or other adult has secured the door with a lock or latch that is located on the inside of the door at a height beyond the reach of the children.

(1) If a center documents to the satisfaction of the Office of Licensing that it lacks the authority to meet the lock or latch provisions noted in this subparagraph, the Office of Licensing may approve an alternative means by which the center may comply with the privacy intent of this provision.

2. For existing centers that have an additional toilet facility that has not been counted in determining the maximum number of children who can be served per session and for centers to be located in newly constructed buildings, the center shall ensure that:

i. One toilet facility is reserved and designated for the exclusive use of staff members and other adults; and

ii. This designated toilet facility is identified by a sign located on the exterior of its door, indicating that this toilet facility is for the exclusive use of staff members and other adults.

(e) For early childhood programs, the following shall apply:

1. Centers that are to be located in newly-constructed buildings that seek to serve 16 or more children shall equip every room designated for use by children, except for kitchen and toilet facilities, with either uncovered glass panels or two-way mirrors that comprise at least 10 percent of the square footage of at least one interior wall in order to promote maximum visibility in such rooms.

SUBCHAPTER 6. PROGRAM REQUIREMENTS

3A:52-6.1 Activities

(a) The center shall develop and provide a variety of children's planned activities, geared to the ages and developmental levels of the children served, that:

1. Promote the development of language, thinking and problem-solving skills, curiosity, exploration, large and small muscles, coordination and movement skills, social competence, self-esteem, and positive self-identity; and

2. Are relevant to the cultural background of the children and foster intercultural awareness.

(b) The staff member(s) specified in N.J.A.C. 3A:52-4.5 who are responsible for developing and overseeing the implementation of the center's daily activities shall ensure that:

1. Time frames for each activity are geared to the age and developmental level of each child served and are flexible enough to accommodate spontaneous occurrences or children's suggestions and inquiries;

2. Children have opportunities to choose materials freely and materials are accessible at all times except during lunch and nap time;

3. Children are presented with and encouraged to participate in a mixture of active and quiet experiences;

4. Both staff-directed and child-selected activities are provided;

5. Children are:

i. Encouraged, but not required, to participate in every group activity; and

ii. Provided with the time and space within the area to be apart from the group and to participate in an alternate activity if they choose to do so;

6. Children are provided with daily structured and unstructured developmentally appropriate indoor and outdoor energetic physical activity as follows:

i. At least 30 total minutes daily for children receiving child care less than four hours;

ii. At least 60 total minutes daily for children receiving child care more than four hours; and

iii. Whenever feasible, and unless the child is eating, sleeping, needs to complete a seated activity, or is ill, children shall not be inactive for more than 30 minutes; and

7. The use of a television, computers, and other video equipment shall be limited to educational and instructional use, shall be age and developmentally appropriate, and shall not be used as a substitute for planned activities or for passive viewing.

i. Centers shall prohibit the use of television, computers, and other video equipment for children under the age of two.

ii. Centers shall develop a written policy regarding the use of television, computers, and other equipment for children over the age of two and maintain on file written plans for such use and the length of time for their use. In addition, centers shall develop a written policy for the use of such equipment as it pertains to children in care less than four hours and children in care more than four hours.

iii. Centers shall develop written plans for children with special needs who may benefit from the educational or instruction use of a television, computer, or other video equipment.

(c) The center shall ensure that each child riding a bicycle wears a helmet, as specified in the Bicycle Helmet Law, N.J.S.A. 39:4-10.1.

(d) Centers serving sick children shall comply with the variation on developing and providing children's activities, as specified in N.J.A.C. 3A:52-8.5(a).

(e) The center shall ensure that pacifiers are removed when the children are crawling or walking.

(f) The staff member(s) specified in (b) above shall prepare and maintain on file a written outline of the center's daily activities, as specified in (a) through (d) above and (g) and (h) below.

(g) For early childhood programs, the following shall apply:

1. The center shall provide daily outdoor activities at an outdoor play area, park or playground, or on a walk, weather permitting.

2. Centers serving children less than 18 months of age shall provide at least four types of children's daily activities including, but not limited to, sensory; language and dramatic play; manipulative; building; large muscle; music; or other comparable activities; and at least four types of supplies and equipment for each activity area chosen by the center.

i. Staff members shall provide periodic activity or learning opportunities to stimulate the five senses of non-ambulatory children.

ii. Staff members shall ensure infants have age-appropriate, supervised tummy time at least twice per day.

iii. Staff members shall provide all children who are developmentally able with opportunities to leave their cribs, playpens or other Office of Licensing-approved sleeping equipment to crawl, toddle, walk, and play.

iv. The use of infant equipment including swings, exersaucers, and bouncers shall be limited to periods of 30 minutes at a time.

3. Centers serving children 18 months of age and older shall provide at least five types of children's daily activities including, but not limited to, language; science and mathematics; manipulative; large muscle; building; art; music; drama; or other comparable activities; and at least five types of supplies and equipment for each daily activity chosen by the center.

4. Centers that operate during evening hours shall ensure that the activity level for children is reduced in preparation for sleep and shall provide a selection of toys or other materials for quiet activities.

(h) For school-age child care programs, the following shall apply:

1. Centers shall plan and implement programs that include:

i. Activities that reflect the interests and skills of the children served;

ii. Opportunities for child involvement in activity planning;

iii. Opportunities for self-selected activities;

iv. Recreational opportunities, including a mixture of indoor, outdoor, and large muscle activities; and

v. Daily schedules that include individual quiet times, structured and unstructured activities, and small-group and large-group activities.

3A:52-6.2 Program equipment for children's daily activities

(a) The center shall provide a supply of age-appropriate and developmentally appropriate program equipment including play equipment, child-size furniture and supplies that are:

1. Sufficient to meet the daily activity needs of the children and the program; and
2. Non-toxic and safe for use by children in the age groups served.

3A:52-6.3 Food and nutrition

(a) All centers shall comply with the following requirements:

1. Food served to children who are present during normal mealtime hours or required snack periods, as specified in (b) and (c) below, shall be provided either by the child's parent or by the center.

2. If the center chooses to provide food, the center shall ensure that all food served to children is prepared by either:

i. The center on-site or off-site; or

ii. A caterer who is licensed, registered, certified, or otherwise approved, as appropriate, by the local or county health department or State Department of Health, as applicable.

3. If the center chooses to have parents provide food, the center shall have a supply of food at the center for any child whose parent forgets.

4. If the center provides food, the center shall ensure that the food is stored, prepared, and served in a sanitary manner.

5. Staff members shall advise parents of any repetitive feeding problems experienced by their child.

6. Staff members shall not force-feed or coerce a child to eat against his or her will.

7. A snack shall be served to all children who are under the center's care for at least three consecutive hours and for all children who are served on an after-school basis.

8. Drinking water shall be made available to all children.

9. Centers that provide meals shall ensure that:

i. For children on special diets (for example, due to health reasons, religious belief or parental request), an alternative choice of food is provided by either the center or the child's parent; and

ii. Individualized written diets and feeding schedules, if submitted to the center by the child's parent or health care provider, are posted in a location that is accessible to staff members caring for the children, and are followed.

10. The center shall have a supply of food at the center and shall serve a snack to any child who is hungry or has missed a meal.

11. Unless contraindicated by the parent or health care provider, the center shall:

i. Not serve sugar sweetened or artificially-sweetened beverages. Parents that provide such beverages for their children shall be provided with information regarding healthier options;

ii. Not provide solid food to children under the age of six months;

iii. Not provide cows' milk to children under the age of 12 months;

iv. Provide only whole pasteurized milk to children between the ages of 12 and 24 months or milk with reduced fat (two percent) for those children who are at risk for hypercholesterolemia or obesity;

v. Provide skim (fat-free) or one percent milk to children older than two years of age;

vi. Ensure that food and beverages are in accordance with minimum Child and Adult Care Food Program's (CACFP) standards, contained in the Child and Adult Care Food Program, 7 CFR 226.20, which is incorporated herein by reference, and can be obtained at http://www.fns.usda.gov/cnd/care/childcare.htm, including portion size and nutritional value;

vii. Provide a variety of both fruits and vegetables and high portion of whole grains; and

viii. Limit foods that are high in solid fats, added sugar, trans fats, and sodium.

12. The center shall ensure that these safety and sanitation practices are followed:

i. Older infants shall not carry bottles, sippy cups, or regular cups with them while crawling or walking;

ii. Sippy cups shall be labeled with the child's name;

iii. Food left uneaten in a dish shall be discarded;

iv. Food shall not be shared among children using the same dish or spoon; and

v. Unused portions of food shall be labeled with the child's name, date, and type of food. The food shall be stored in the refrigerator, returned to the parent, or discarded with the parent's consent. All unused food shall be discarded if not consumed by the end of the day.

(b) For early childhood programs, the following shall apply:

1. Centers operating for more than three consecutive hours shall have a working refrigerator.

2. Food brought from outside the center for a child shall be inspected by a staff member for spoilage before it is served.

3. Feeding requirements for centers serving children less than 18 months of age are as follows:

i. The center shall develop mutually with each child's parent(s) and follow a feeding plan regarding the feeding schedule, specific formula, breastfeeding arrangements and accommodations, and/or expressed breast milk, nutritional needs, and introduction of new food for each child.

ii. For children less than 12 months of age, the feeding plan shall be:

(1) Documented in writing;

(2) Maintained on file; and

(3) Made available to each staff member responsible for feeding each child;

iii. All food served to a child shall be appropriate to the child's developmental eating ability;

iv. The requirements for bottles are as follows:

(1) Each child's bottle(s) shall be labeled with the child's name and dated;

(2) The center shall sanitize each child's bottles, including the nipples, when the center provides the bottles;

(3) Breast milk shall be gently mixed but not be shaken;

(4) Refrigerated breast milk shall be used within 24 hours;

(5) Formula or breast milk that is served, but not completely consumed or refrigerated, shall be discarded; and

(6) No milk, formula, or breast milk shall be warmed in a microwave oven;

v. A child who is too young to use a feeding chair or other seating apparatus shall be held when fed;

vi. A child who, because of age or developmental readiness, no longer needs to be held for feeding shall be provided with an infant seat, high chair with safety strap, or other age-appropriate seating apparatus, which meets the standards of a recognized safety organization (such as the Juvenile Products Manufacturers Association, the American Society for Testing and Materials, or the United States Consumer Product Safety Commission);

vii. When a child is feeding, the bottle shall not be propped at any time; and

viii. When a child is bottle-feeding while resting, the bottle shall be removed when the child falls asleep.

4. Mealtime and snack requirements for centers serving children 18 months of age or older and those children younger than 18 months of age who are developmentally ready to eat regular meals and snacks are as follows:

i. Centers that provide breakfast shall ensure that breakfast includes the following:

(1) Fruits, vegetables or fruit or vegetable juice; and

(2) Enriched whole grain bread, a bread product or cereal or a protein alternative.

ii. The center shall serve lunch for all children who have not eaten lunch and are:

(1) Present during 11:00 A.M. to 1:00 P.M.; and

(2) Under the center's care for at least five consecutive hours;

iii. The center shall serve dinner for all children who:

(1) Have not eaten dinner;

(2) Are present from 5:00 P.M. to 7:00 P.M.; and

(3) Are scheduled to remain after 7:00 P.M.;

iv. Centers that provide meals shall ensure that lunch and dinner for each child include the following:

(1) Meat, poultry, fish or a protein alternative;

(2) Fruits or vegetables;

(3) Bread or bread products; and

(4) Milk, juice or water;

v. Centers that provide snacks shall ensure that the snack includes one juice, milk, or fruit and one food supplement selected from the lunch and dinner choices specified in (b)4iv above, except on special occasions, such as holidays and birthdays; and

vi. Centers that provide meals shall ensure that milk is served at least once a day.

(c) For school-age child care programs, the following shall apply:

1. Centers that store perishable foods or medication shall have access to a refrigerator.

2. Centers that provide snacks should include one juice, milk or fruit and one food supplement selected from the food choices specified in (b)4iv above.

3. On days when school is not in session, if applicable, the center shall serve meals as specified in (b)4 above.

3A:52-6.4 Rest and sleep requirements for early childhood programs

(a) For early childhood programs, the center shall provide opportunities for daily rest and sleep as follows:

1. For children 12 months of age and younger, the center shall ensure that each child is initially placed in a face-up sleeping position unless a different position is indicated in writing by the child's health care provider.

2. For children from 13 to 18 months of age, the center shall provide daily rest and sleep according to the child's physical needs and ensure that blankets or pillows do not cover the child's face.

3. Swaddling of children during rest and sleep is prohibited.

4. For children over the age of 18 months and under the age of four years, the center shall provide:

i. Daily rest or sleep for each child who attends the center for four or more consecutive hours;

ii. Daily rest or sleep for each child who attends the center for fewer than four consecutive hours, but whose individual physical needs call for a rest period while the child is at the center; and

iii An alternative quiet activity for each child who has rested or slept for 30 minutes and does not appear to need additional rest or sleep.

(b) The center shall provide sleeping equipment for each child as follows:

1. For children 12 months of age and younger, the center shall provide for each child a crib, that complies with the Consumer Product Safety Commission's (CPSC) Federal Safety Standards for Full-Size and Non-Full-Size Baby Cribs; 16 CFR 1219 and 1220, which is incorporated herein by reference, and can be obtained through the CPSC's website at https://www.cpsc.gov/Safety-Education/Safety-Education-Centers/cribs , playpen**,** or other Office of Licensing-approved sleeping equipment that meets the following requirements:

i. Each crib or playpen shall be equipped with:

(1) A firm, waterproof, snugly fitting mattress;

(2) A clean, snugly fitting sheet;

(3) Top rails that are at least 19 inches above the mattress; and

(4) Slats that are not more than 2 3/8 inches apart.

ii. Sleeping equipment shall be free of pillows and soft bedding, including, but not limited to bumper pads, when occupied by a sleeping child.

iii. Stackable cribs shall be prohibited.

2. For children over the age of 12 months and under the age of five years, the center shall provide for each child a crib that complies with the Consumer Product Safety Commission's (CPSC), Federal Safety Standards for Full-Size and Non-Full-Size Baby Cribs; 16 CRF 1219 and 1220, which is incorporated herein by reference, and can be obtained through the CPSC's website at http://www.cpsc.gov/businfo/frnotices/fr11/cribfinal.pdf, playpen, cot, mat, or other Office of Licensing-approved sleeping equipment that meets the following requirements:

i. Each cot used for children between 13 and 18 months of age shall not exceed 14 inches above the floor level.

ii. Each cot or mat used for rest and sleep shall be covered with a sheet, blanket or other covering. An additional covering shall be provided for use as a covering for each child.

iii. Each mat used for rest and sleep shall be:

(1) Placed on a surface that is warm, dry, clean and draft-free;
(2) Water-repellent;
(3) At least one inch thick; and
(4) Stored so that there is no contact with the sleeping surface of another mat, or disinfected after each use, as specified in N.J.A.C. 3A:52-7.7(a)1.

iv. Stackable cribs shall be prohibited.

(c) Centers that operate after 7:00 P.M. shall comply with the following requirements for rest and sleep:

1. For children who attend the center for more than three hours after 7:00 P.M., the center shall:

i. Establish bedtime schedules for each child in consultation with parent(s);

ii. Ensure that any Office of Licensing-approved sleeping equipment, other than a bed or mat, has been fitted with a minimum one-inch thick water-repellent mat or mattress; and

iii. Ensure that each child is changed into sleeping garments.

(d) All sleeping equipment shall meet the standards of a recognized safety organization (such as the Juvenile Products Manufacturers Association, the American Society for Testing and Materials, or the United States Consumer Product Safety Commission).

(e) Sheets, blankets and other coverings shall be:

1. Changed when wet, soiled or damaged; and
2. Changed before use by another child.

(f) When cribs, playpens, cots, mats or other Office of Licensing-approved sleeping equipment are stored with sheets, blankets, or other coverings as single units, at least one item of each unit shall be labeled with child-identifying information.

(g) When sheets, blankets and other coverings are not stored with sleeping equipment, each of these items shall be:

1. Labeled for each child; and
2. Stored separately for each child.

(h) During rest and sleep periods, only one child shall occupy a crib, playpen, cot, mat, or other Office of Licensing-approved sleeping equipment at one time.

(i) Children shall not use pacifiers with straps or other types of attachment devices.

3A:52-6.5 Policy on the release of children

(a) The center shall maintain on file and follow a written policy on the release of children, which shall include:

1. The provision that each child may be released only to the child's parent(s) or person(s) authorized by the parent(s), as specified in N.J.A.C. 3A:52-6.8(a)3, to take the child from the center and to assume responsibility for the child in an emergency if the parent(s) cannot be reached;

2. The provision that, if a particular non-custodial parent has been denied access, or granted limited access, to the child by a court order, the center shall secure documentation to this effect, maintain a copy on file, and comply with the terms of the court order;

3. Written procedures to be followed by staff member(s) if the parent(s) or person(s) authorized by the parent(s), as specified in (a)1 above, fails to pick up a child at the time of the center's daily closing. The procedures shall require that:

i. The child is supervised at all times;

ii. Staff members attempt to contact the parent(s) or person(s) authorized by the parents; and

iii. An hour or more after closing time, and provided that other arrangements for releasing the child to his or her parent(s) or authorized person(s) have failed and the staff member(s) cannot continue to supervise the child at the center, the staff member shall call the Department's State Central Registry Hotline (1-877 NJ ABUSE/1-877-652-2873) to seek assistance in caring for the child until the parent(s) or person(s) authorized by the child's parent(s) is able to pick up the child; and

4. Written procedures to be followed by a staff member(s) if the parent(s) or person(s) authorized by the parent(s), as specified in (a)1 above, appear to be physically or emotionally impaired to the extent that, in the judgment of the director or staff member, the child would be placed at risk of harm if released to such an individual. The procedures shall require that:

i. The child shall not be released to such an impaired individual;

ii. Staff members attempt to contact the child's other parent or an alternative person(s) authorized by the parent(s); and

iii. If the center is unable to make alternative arrangements, as noted in (a)3ii above, a staff member shall call the Department's State Central Registry Hotline (1-877 NJ ABUSE/1-877-652-2873) to seek assistance in caring for the child.

(b) The center shall distribute a copy of the release policy to the parent of each enrolled child and each staff member and secure and maintain on file a record of each parent’s and staff member’s signature attesting to receipt of the policy.

(c) For school-age child care programs, the following shall apply:

1. No child shall be released from the program unsupervised except upon written instruction from the child's parent.

3A:52-6.6 Discipline

(a) The methods of guidance and discipline used shall:

1. Be positive;
2. Be consistent with the age and developmental needs of the children; and
3. Lead to the child's ability to develop and maintain self-control.

(b) Staff members shall not discipline children for failing to eat or sleep or for soiling themselves.

(c) Staff shall not withhold active play time as a means of discipline unless the child's actions or behavior present a danger to themselves or others.

(d) Children may be removed from a group activity to another area, provided that the child so removed is either under the supervision of another staff member or continuously visible to a staff member.

(e) The center shall maintain on file a written policy on the disciplining of children by staff members. The policy shall:

1. Reflect the provisions specified in (a) through (c) above and include the acceptable actions that a staff member may take when disciplining a child (that is, discussion with the child, time-out, etc.);
2. Be distributed to every staff member; and
3. Be posted in a prominent location within the center.

(f) The center shall secure and maintain on file each staff member's signature, attesting to receipt of the policy on the disciplining of children by staff members.

(g) For school-age child care programs, the following shall apply:

1. The center shall permit children to participate in the development of the discipline rules and procedures; or
2. The center shall establish procedures to ensure that children are aware of the rules.

3A:52-6.7 Special requirements to prevent child abuse or neglect and inappropriate staff behaviors toward children

(a) Staff members shall not use hitting, shaking or any other form of corporal punishment of children.

(b) Staff members shall not use abusive language, ridicule, harsh, humiliating or frightening treatment or any other form of emotional punishment of children.

(c) Staff members shall not engage in or inflict any form of child abuse or neglect.

(d) Staff members shall not withhold from children food, emotional responses, stimulation, or the opportunities for rest or sleep.

(e) Staff members shall not require a child to remain silent or inactive for an inappropriately long period of time for the child's age.

(f) Centers shall not prohibit staff members from or discipline staff members for:

1. Making good faith reports of suspected child abuse or neglect to the Division of Child Protection and Permanency or law enforcement; or
2. Taking photographs of children for the purpose of documenting injuries in support of a good-faith report of suspected child abuse or neglect to the Division of Child Protection and Permanency or law enforcement.

3A:52-6.8 Parent and community participation

(a) The center shall complete and maintain on file for each enrolled child a Children's Records Checklist, signed by the director, sponsor, or sponsor representative and designated by the Office of Licensing, indicating that the center has obtained documentation of:

1. The child's name, address, birth date, and date of enrollment;

2. The name(s), home and work address(es), home and work telephone number(s) and signature(s) of the parent(s);

3. The name(s), address(es), and telephone number(s) of any person(s) authorized by the parent(s) to visit the child at the center and/or take the child from the center, as specified in N.J.A.C. 3A:52-6.5(a)1;

4. The name, address, and telephone number of the child's health care provider;

5. Signed authorization from the parent(s) for emergency medical treatment;

6. The parent's signature attesting to the receipt of the Information to Parents document, as specified in N.J.A.C. 3A:52-3.6(b); and

7. Health information for each child, as follows:

i. For early childhood programs, a record of the child's health examination and immunizations, as specified in N.J.A.C. 3A:52-7.3(a); or

ii. For school-age child care programs, a record of the parent's statement concerning the child's health, as specified in N.J.A.C. 3A:52-7.3(b).

(b) The center shall allow the parent(s) of enrolled children to visit the center at any time during the center's hours of operation to observe its operation and program activities without requiring the parent(s) to secure prior approval.

(c) The center shall provide the parents of prospective enrollees the opportunity to visit the center to observe its operation and program activities, but may require that such visits are arranged in advance and at the convenience of the center director.

(d) Staff member(s) shall inform the parent(s) of enrolled children in advance of any field trip(s), outing(s), or special event(s) involving the transportation of children away from the center. The center shall inform parents whether a school bus, other approved school vehicle, or private passenger vehicle will be used, and whether the driver will be a staff member, a parent, or another person. The center shall provide each parent with the name and telephone number of any bus company providing service. Before taking a child on such a field trip, outing, or special event, the center shall either:

1. Secure individual written consent slips signed by a parent for his or her child(ren) for each proposed field trip, outing or special event;

2. Post a notice of a proposed individual field trip, outing or special event in a place of prominence within the center, on which the parent shall be asked to sign consent for his or her child to attend; or

3. Issue to every parent a written schedule of all field trips, outings or special events to be taken during any given time frame (that is, weekly, monthly, yearly). A parent shall be asked to sign this schedule indicating his or her consent for any or all field trips, outings or special events listed.

(e) The center may utilize a blanket permission slip for taking children on walks only if:

1. Walks are within the center's neighborhood;

2. The center makes arrangements for the handling of visits or telephone calls from parents either by:

i. Having someone remain at the center; or

ii. Utilizing a telephone answering machine and posting a notice on the entrance door of the center to inform parents of the children's location;

3. The route of the walk involves no safety hazards; and

4. The walk involves no entrance into a facility unless the facility has been indicated on the blanket permission slip.

(f) The center shall maintain on file a record of signed blanket permission slips for walks and signed individual permission slips for field trips, outings or special events.

(g) The center should promote the involvement of representatives of the community to enhance the staff members' and the children's knowledge of community services, programs and resources.

(h) For early childhood programs, the following shall apply:

1. The center shall adopt at least one of the following options to ensure the participation of the parents of enrolled children in the activities and operations of the center:

i. A governing board responsible for approving, reviewing, and monitoring the center's policies, budget, staff recruitment and selection, physical environment, and program activities;

ii. An advisory committee that offers advice and counsel to the center on its policies, staff recruitment and selection, physical environment, and program activities;

iii. An annual meeting to which all parents and staff members are invited for the purpose of sharing goals, recommendations, and concerns. The center shall maintain on file a record of this meeting; or

iv. An annual open house to which parents are invited for the purpose of observing the program. The center shall maintain on file a record of the open house.

2. Centers choosing the options specified in either (h)1i or ii above shall maintain on file a listing of current members of the board or committee and documentation indicating that the board or committee is functioning. The board or committee shall:

i. Offer at least one-third of its membership positions to parents of enrolled children;

ii. Include representatives from the civic, business, educational or child care communities; and

iii. Meet at least quarterly during the center’s operating year.

3. The center shall provide for the direct involvement of parents of enrolled children in the center's operation and activities by:

i. Providing an opportunity for parents to volunteer to help in the center's program; and

ii. Holding individual parent/staff conferences semi-annually and upon request of the parent or staff member(s) to discuss the child’s needs and progress.

4. The center shall provide for the parents of each newly-enrolled child an opportunity to attend an enrollment conference, at which the center shall:

i. Inform parents about the center’s days and hours of operation;

ii. Discuss the individual child’s habits, dietary and sleep needs, activities, behavior and development, if applicable;

iii. Discuss the center's policy on releasing children, toilet training children when applicable, and administering medication and health care procedures;

iv. Discuss and distribute the center's policy on the management of communicable disease, as specified in N.J.A.C. 3A:52-7.11;

v. Discuss and distribute the Information to Parents document, as specified in N.J.A.C. 3A:52-3.6(a); and

vi. Discuss and distribute the center's policy on the expulsion of children from enrollment at the center, as specified in (j) below.

(i) For school-age child care programs, the following shall apply:

1. Upon the child's enrollment, the center shall:

i. Inform parents about the center's days and hours of operation;

ii. Ask parents to inform the center about the individual child's habits, dietary needs, activities, behavior and development, if applicable;

iii. Inform parents about the center's policies on releasing children and administering medication and health care procedures;

iv. Give parents a copy of the center's policy on the management of communicable disease, as specified in N.J.A.C. 3A:52-7.11;

v. Give parents a copy of the Information to Parents document, as specified in N.J.A.C. 3A:52-3.6(a);

vi. Give parents a copy of the center's policy on the expulsion of children from enrollment at the center, as specified in (j) below; and

vii. Inform parents about the center's policy for serving meals and snacks when the center is operating on days when the child's school is not in session, if applicable.

(j) The center shall develop and follow a written policy on the expulsion of children from enrollment at the center.

1. The expulsion policy shall include:

i. The circumstances under which a child may be expelled;

ii. The method that the center will use to notify parents of concerns that could lead to expulsion, such as written notification or a parent conference;

iii. Sufficient time limits before expulsion to enable parents to make alternative child care arrangements or to take the necessary corrective action to allow the child to remain at the center, except as specified in (j)1iv below; and

iv. Circumstances that may warrant immediate expulsion of a child from the center, such as potentially dangerous behavior by a child or parent.

2. The center shall not expel a child based solely on the child's parent making a complaint to the Office of Licensing regarding a center's alleged violations of the licensing rules or questioning a center directly regarding policies and procedures.

3. The center shall distribute a copy of the expulsion policy to the parent of each enrolled child and secure and maintain on file a record of each parent's signature attesting to receipt of the policy.

4. If the center determines to expel a child, the center shall maintain on file a record of the circumstances, parental notification, and corrective action taken.

(k) The center shall develop and follow a written policy on the use of social media including, but not limited to:

1. The use of social networking sites and other websites;

2. The use of e-mail, text messages, and other electronic means of communication with staff and parents;

3. The types of social media that the center uses;

4. The methods and devices the staff use to communicate with the parent;

5. The guidelines for appropriate conduct by staff members; and

6. The guidelines for parents, including but not limited to, prohibiting the posting of photographs or videos of any child other than their own.

(*l*) The center shall distribute a copy of the social media policy to the parent of each enrolled child and to each staff member and secure and maintain on file a record of each parent's signature and each staff member's signature attesting to the receipt of the policy.

(m) In the event of temporary or permanent closure of the center, the center shall provide advance notice to parents of enrolled children in sufficient time to enable parents to make alternative child care arrangements.

SUBCHAPTER 7. HEALTH REQUIREMENTS

3A:52-7.1 Illnesses and communicable diseases

(a) A center that seeks to serve any children who have any of the illnesses, symptoms of illness**,** or diseases specified in (c) and (d) below shall meet all applicable provisions of this subchapter and all provisions of N.J.A.C. 3A:52-8.

(b) Under no circumstances shall any center serve or admit any child who has any illness, symptom of illness or disease that a health care provider has determined requires the child to be:

1. Confined to home under a health care provider's immediate care; or
2. Admitted to a hospital for medical care and treatment.

(c) The following provisions relate to illness or symptoms of illness:

1. A center serving well children shall not permit a child who has any of the illnesses or symptoms of illness specified in (c)1i through xiii below to be admitted to the center on a given day unless medical diagnosis from a health care provider, which has been communicated to the center in writing, or verbally with a written follow-up, indicates that the child poses no serious health risk to himself or herself or to other children. Such illnesses or symptoms of illness shall include, but not be limited to, any of the following:

i. Severe pain or discomfort;

ii. Acute diarrhea, characterized as twice the child's usual frequency of bowel movements with a change to a looser consistency within a period of 24 hours, or bloody diarrhea;

iii. Two or more episodes of acute vomiting within a period of 24 hours;

iv. Elevated oral temperature of 101.5 degrees Fahrenheit or over or axillary temperature of 100.5 degrees Fahrenheit or over in conjunction with behavior changes;

v. Lethargy that is more than expected tiredness;

vi. Yellow eyes or jaundiced skin;

vii. Red eyes with discharge;

viii. Infected, untreated skin patches;

ix. Difficult rapid breathing or severe coughing;

x. Skin rashes in conjunction with fever or behavior changes;

xi. Weeping or bleeding skin lesions that have not been treated by a health care provider;

xii. Mouth sores with drooling; or

xiii. Stiff neck.

2. Once the child is symptom-free, or a health care provider indicates that the child poses no serious health risk to himself or herself or to other children, the child may return to the center.

3. If a child who has already been admitted to the center manifests any of the illnesses or symptoms of illness specified in (c)1 above, the center shall remove the child from the group of well children to a separate room or area, as specified in N.J.A.C. 3A:52-5.3(q)4, until:

i. He or she can be taken from the center; or

ii. The director or his or her designee has communicated verbally with a health care provider, who indicates that the child poses no serious health risk to himself or herself or to other children, at which time the child may return to the group.

4. The center may exclude a child whose illness prevents the child from participating comfortably in activities or results in a greater need for care than the staff can provide without compromising the health and safety of other children at the center.

(d) The following provisions relate to excludable communicable diseases:

1. The center shall not permit a child or staff member with an excludable communicable disease, as set forth in the Department of Health's Reporting Requirements for Communicable Diseases and Work-Related Conditions Quick Reference Guide, revised July 2011, and available at http://www.nj.gov/health/cd/documents/reportable_disease_magnet.pdf, incorporated herein by reference, as amended and supplemented**,** to be admitted to or remain at the center, until:

i. A note from the child's or staff member's health care provider states that the child or staff member, respectively, has been diagnosed and presents no risk to himself, herself, or to others;

ii. The center has contacted the Communicable Disease Program in the State Department of Health, or the local health department pediatric health consultant, and is told the child or staff member poses no health risk to others; or

iii. If the child or staff member has chicken pox, the center obtains a note from the parent or staff member stating that all sores have dried and crusted.

3A:52-7.2 Attendance by children or staff members known to be infected with Human Immunodeficiency Virus (HIV)

(a) The center should admit a child known to be infected with HIV, the virus that causes Acquired Immunodeficiency Syndrome (AIDS), to the center.

(b) The center should not exclude a child known to be infected with HIV in order to protect him or her from possible exposure to the infectious diseases of other persons at the center.

(c) The center should not exclude a child solely for the reason that such individual lives with or is related to a person known to be infected with HIV.

(d) The director shall maintain the confidentiality of any child or staff member known to be infected with HIV.

(e) The center shall not require the routine medical screening of children or staff members in a center to detect the presence of HIV.

3A:52-7.3 Health and immunization requirements for children

(a) For early childhood programs, the following shall apply:

1. Each child not enrolled in a public or private school shall have had a health examination performed by a health care provider within:

i. Six months prior to admission, for children who are 2½ years of age or younger; or

ii. One year prior to admission, for children above 2½ years of age.

2. For each child not enrolled in a public or private school, upon admission, the center shall maintain on file at the center a Universal Child Health Record (Department of Health Form CH-14) or its equivalent, updated annually, along with an immunization record , and a special care plan, if applicable. A 30-day grace period is permitted in N.J.A.C. 8:57-4.5(e):

i. For children coming from other states or countries in accordance with N.J.A.C. 8:57-4.6 and 4.7; and

ii. For children who are in foster care or experiencing homelessness as defined by the McKinney-Vento Act, 42 U.S.C. § 11434a(2).

3. For children enrolled in a public or private school, the center shall obtain a written statement from each child's parent indicating:

i.That the child is in good health and can participate in the normal activities of the program; and

ii. Any conditions or specific needs that may require special accommodations.

4. If immunizations are contraindicated for medical reasons, the center may choose to admit the child, provided that the parent submits to the center a written statement from a health care provider attesting to the following:

i. The reason the immunization is medically contraindicated; and

ii. The specific time period that the immunization is medically contraindicated.

5. A child shall be exempted from a physical examination, immunization**,** or medical treatment if the parent objects thereto in a written statement submitted to the center, signed by the parent, explaining how the examination, immunization**,** or medical treatment conflicts with the child's exercise of bona fide religious tenets or practices.

i. Religiously-affiliated centers shall have the authority to withhold or grant a religious exemption from the required immunization for children entering or attending their centers without challenge by any secular health authority, as specified in N.J.A.C. 8:57-4.4.

ii. The center shall maintain the parent's written statement on file as part of the child's record.

6. Those children with immunization exemptions may be excluded from the center by the Office of Licensing or the Department of Health during a vaccine-preventable disease outbreak or threatened outbreak, as determined by the State Commissioner of Health.

(b) For school-age child care programs, the following shall apply:

1. The center shall obtain a written statement from each child's parent indicating:

i. That the child is in good health and can participate in the normal activities of the program; and

ii. Any conditions or special needs that may require special accommodations.

3A:52-7.4 Health requirements for staff members

(a) Prior to or upon beginning work at the center, each staff member whose job duties require contact with the children for at least 20 percent of the center's weekly operating hours shall take a Mantoux tuberculin skin test with five TU (tuberculin units) of PPD tuberculin, except that the staff member shall have a chest x-ray taken if he or she has had a previous

positive Mantoux tuberculin test. The staff member shall submit to the center written documentation of the results of the test and x-ray.

1. If the Mantoux tuberculin test result is insignificant (zero to nine millimeters (mm) of induration), no further testing shall be required. The Office of Licensing or center may at any time require a staff member to retake the Mantoux tuberculin test if there is reason to believe or suspect that the staff member may have contracted tuberculosis or if the State Department of Health recommends retesting.

2. If the Mantoux tuberculin skin test result is significant (10 or more mm of induration), the individual shall have a chest x-ray taken. If the chest x-ray shows significant results, the staff member shall not come in contact with the children unless he or she submits to the center a written statement from a health care provider certifying that he or she poses no threat of tuberculosis contagion.

(b) Prior to beginning work, each staff member whose job duties require contact with the children for at least 20 percent of the center's weekly operating hours shall submit a written statement from a health care provider, indicating that he or she is in good health and poses no health risk to persons at the center. Such statement shall be based on a medical examination within the six months immediately preceding such person's working at the center.

(c) The center shall maintain on file either at the center or at a central administrative office the results of each staff member's:

1. Mantoux tuberculin test and chest x-ray when indicated; and
2. Physical examination.

(d) The sponsor or sponsor representative or director shall exclude a staff member who:

1. Exhibits the illnesses or symptoms of illness or diseases specified in N.J.A.C. 3A:52-7.1(c)1 and (d); or

2. Appears to be physically, emotionally or mentally impaired or who appears to have a drug-induced or alcohol-induced condition that would endanger the health, safety, and well-being of a child while the child is in the staff member's care. The director shall document the action taken to exclude the staff member and maintain such documentation on file. The center shall not permit the staff member to return to the center until the condition is no longer present.

(e) When the affected staff member specified in (d) above serves as the director, then the sponsor or sponsor representative shall take the necessary action specified in (d) above.

(f) When the affected staff member specified in (d) above is the sponsor or sponsor representative, then the Office of Licensing shall take the necessary action specified in (d) above.

3A:52-7.5 Administration and control of prescription and non-prescription medicines and health care procedures

(a) The center shall inform each child’s parent upon enrollment of its policy on administering medication and health care procedures to children, including the provisions specified in (b) to (d) below. The policy shall indicate:

1. Whether the center will administer non-prescription medication or a non-prescribed health care procedure to a child;

2. Whether the center will administer prescription medication or a prescribed health care procedure to a child with a short-term illness; and

3. That the center will provide reasonable accommodations for the administration of medication or health care procedures to a child with special needs, if failure to administer the medication or health care procedure would jeopardize the health of the child or prevent the child from attending the center.

(b) The center shall develop and follow a policy on the administration of medication and health care procedures to children, which shall include the following provisions:

1. Medication and health care procedures shall be administered only after receipt of written approval from the child's parent(s).

2. The center shall:

i. Designate those staff members who are trained as specified in N.J.A.C. 3A:52-4.8(a)8 and authorized to administer medication or health care procedures to, or to supervise self-administration of medication or health care procedures by, those children whose parents authorize it; and

ii. Ensure that each staff member designated to administer medication and health care procedures is informed of each child's medication and health care needs.

3. All medication and health care equipment shall be kept either in a locked cabinet or in an area that is inaccessible to the children.

i. All medication shall be kept in its original container.

ii. Medication shall be refrigerated if so indicated on the label.

iii. Unused or expired medication and health care equipment shall be returned to the child’s parent or disposed of safely in a child-resistant waste receptacle when no longer being administered.

4. All prescription medication for a child shall be:

i. Prescribed in the name of and specifically for the child; and

ii. Stored in its prescription container, which has been labeled with the child's name, the name and expiration date of the medication, the date it was prescribed or updated and directions for its administration.

5. The center shall limit the dispensing of non-prescription over-the-counter medication to the following types of medicines, which shall be dispensed in accordance with the recommended dosage for the age and weight of the child, as indicated on the label:

i. Antihistamines;

ii. Cough suppressants;

iii. Decongestants;

iv. Non-aspirin fever reducers and pain relievers; and

v. Topical preparations, such as sunscreen and diaper rash preparations.

6. The center may permit the dispensing of non-prescription medication other than those listed in (b)5 above, or according to instructions other than those indicated on the label, if the child's health care provider authorizes it in writing.

7. The center shall maintain on file a record of the following:

i. The child's name and parental authorization for the center to administer medication or health care procedures;

ii. The name of the medication or health care procedure;

iii. The condition for which the medication or health care procedure is being used;

iv. The instructions for administration, including the dosage and frequency;

v. The date and time medication or a health care procedure was administered to a child and the name or initials of the staff member who administered it; and

vi. Any adverse effect the medication can have or has had on the child;

8. If a child has a chronic health condition requiring the administration of prescription or non-prescription medication or health care procedures on a long-term basis, the center shall obtain from the child's parent a written statement from a health care provider, indicating:

i. The name of the child;

ii. The name of the medication or procedure;

iii The condition or indications for administration of the medication or procedure;

iv. The instructions for administration of the medication or procedure; and

v. The name and telephone number of the health care provider.

9. Before administering a health care procedure associated with a child's health condition, such as the use of a blood glucose monitor, nebulizer, or epinephrine pen, the center shall ensure that all staff members who administer the procedure are taught to do so by the child's parent or another appropriately-trained person. There shall be at least two staff members present at the center who are trained in such health care procedures.

10. The center shall store prescribed epinephrine pens in their original boxes with the child's name and prescription. A special care plan or other documentation from a health care provider shall accompany the epinephrine pen. If two epinephrine pens are required, both shall be available. Each center under the jurisdiction of N.J.S.A. 18A:40-12.5 shall store back-up epinephrine pens on site consistent with the requirements stated at N.J.S.A. 18A:40-12.5.e(1).

11. The center shall inform the child's parent immediately if a child exhibits any adverse effect of a medication or health care procedure.

(c) For early childhood programs, the following shall apply:

1. The center shall ensure that all medication and health care procedures are administered by designated staff.

(d) For school-age child care programs, the following shall apply:

1. Before the center administers or permits a child to self-administer medication or health care procedures, the center shall:

i. Obtain written authorization for self-administration from the child's parent, if applicable; and

ii. Ensure that the medication or health care procedure is administered by or under the supervision of authorized staff.

3A:52-7.6 Injury to a child while in the center's care

(a) The center shall take immediate necessary action to protect the child from further harm and shall immediately notify the child's parent(s) when one of the following occurs while the child is in the center's care:

1. A child is bitten and the skin is broken;

2. A child sustains a head or facial injury, including when a child bumps his or her head;

3. A child falls from a height greater than the height of the child; or

4. An injury requiring professional medical care occurs.

(b) The center shall maintain on file a written record of each incident resulting in an injury as specified in (a) above. These records shall include the following:

1. The name of the injured child;
2. The date, time and location of the incident;
3. The name and address of the center;
4. The name of the person completing the report;
5. The date the report was completed; and
6. A written description of the following:
   i. The incident;
   ii. The injury to the child;
   iii. The names of witnesses to the incident; and
   iv. The follow-up action taken by the center, including:
      (1) Application of first aid; and
      (2) Consultation or treatment by a licensed physician or other health care provider, if applicable.

(c) Bites and injuries other than those specified in (a) above shall be reported to the child's parent by the end of the day.

(d) Upon request of the child's parent, the center shall provide a written description of the incident by the end of the next operating day.

(e) The center shall develop and follow a written policy for parental notification if a method other than a telephone call is used at the center for parental notification.

1. The center shall distribute a copy of this policy to the parent of each enrolled child and secure and maintain on file a record of each parent’s signature attesting to receipt of this policy.

3A:52-7.7 Environmental sanitation requirements

(a) Disinfectants shall be used as follows:

1. The center shall disinfect those items specified in (a)3 below with a solution that shall be either:
   i. A commercially prepared disinfectant that indicates it kills bacteria, viruses, and parasites. This solution shall be used in accordance with label instructions; or
   ii. A self-made solution consisting of one-quarter cup of household bleach to each gallon of water (one tablespoon per quart), which shall be prepared daily and placed in a labeled, sealed container.
2. All areas to be disinfected shall first be washed with soap and water.
3. The schedule for disinfecting shall be as follows:
   i. The following equipment items or surfaces shall be washed and disinfected after each use:
      (1) Washcloths made of fabric, when used for cleaning children;
      (2) Thermometers;
      (3) Items used by a child who becomes ill while at the center; and
      (4) Sleeping mats that are not stored separately.
   ii. The following items shall be washed and disinfected at least daily:

(1) Toilets and toilet seats;
(2) Sinks and sink faucets;
(3) Drinking fountains;
(4) Water table and water play equipment;
(5) Play tables; and
(6) Smooth surfaced non-porous floors in areas used by children.

iii. The following items shall be washed and disinfected at least weekly:

(1) Cribs, cots, mats, playpens, or other Office of Licensing-approved sleeping equipment; and

(2) Sheets, blankets or other coverings.

iv. Tables used by the children for eating shall be washed and disinfected before each meal.

(b) Centers that maintain outside sandboxes or play areas containing sand shall ensure that:

1. Only asbestos-free sand is used; and
2. The sand is maintained in a safe and sanitary manner.

(c) Pets shall be permitted in a center only under the following circumstances:

1. Pets kept by or located in the center, regardless of ownership, shall be:

i. Domesticated and non-aggressive;

ii. Free from disease;

iii. Vaccinated, if applicable, as prescribed by law or local ordinance. The record of the vaccinations shall be maintained on file, along with the name and address of the licensed veterinarian providing care for the pet(s);

iv If sick, removed from the area(s) occupied by children, until the pet has been examined by a licensed veterinarian and has been diagnosed as presenting no risk to the children;

v. Effectively controlled by leash, command**,** or cage; and

vi. Prohibited from the following areas:

(1) Areas and surfaces used for food preparation, storage or service;
(2) Areas used for cleaning or storing of food utensils and dishes; and
(3) Toilet facilities.

2. Animal waste shall be disposed of in sealed plastic bags in the outdoor garbage receptacle.

(d) Smoking shall be prohibited in all rooms and outside play areas while such rooms and areas are occupied by children. The center shall comply with each provision of P.L. 1998, c. 35 (N.J.S.A. 30:5B-5.3).

(e) For early childhood programs, the following shall apply:

1. In addition to the items specified in (a)3 above, the following equipment items or surfaces shall be washed and disinfected after each use:

i. Toilet training chairs and potty seats that have first been emptied into a toilet;

ii Sinks and faucets used for rinsing a toilet training chair;

iii. Diapering surfaces;

iv. Toys mouthed by infants and toddlers before being given to another child; and

v. Bottles, nipples**,** and other feeding equipment.

2. All diaper pails and lids shall be disinfected daily.

3. Centers that toilet train children shall:

i. Utilize non-porous toilets, child-size toilets, toilet training chairs (potties), or children's toilet seats for children being toilet trained;

ii Ensure that toilet training chairs are not used in kitchens or in the immediate area where meals are being served; and

iii. Advise parents of the center's toilet training policy.

4. Poisonous plants shall not be kept in the center or in the outside play area used by the children.

3A:52-7.8 Personal hygiene requirements

(a) Handwashing requirements are as follows:

1. The center shall ensure that children three months of age and older wash their hands with soap and running water:

i. Before intake of food;

ii. Immediately after using the toilet or having diapers changed;

iii. Immediately after coming into contact with blood, fecal matter, urine, vomit, nasal secretions**,** or other body fluids or secretions;

iv. Immediately after coming in contact with an animal's body secretions; and

v. Immediately after outdoor play.

2. For children under three months of age or for those children three months of age and older wherein hand washing with soap and running water may not be developmentally appropriate, the center may use an alternate means for hand washing, including but not limited to disposable baby wipes.

3. When cloth towels are used by children, the towels shall be designated solely for the individual child's use.

4. Staff members shall wash their hands with soap and running water immediately:

i. Before preparing or serving food;

ii. After toileting;

iii. After assisting a child in toileting;

iv. After caring for a child who appears to be sick;

v. After coming in contact with an animal's body secretions; and

vi. After coming into contact with blood, fecal matter, urine, vomit, nasal secretions**,** or other body fluids or secretions.

(b) Staff members shall use disposable rubber gloves, which shall be discarded after each use, when coming into contact with blood or vomit.

(c) Centers that encourage children to brush their teeth while at the center shall individually store toothbrushes in a manner that prevents the toothbrushes from touching each other during storage.

(d) For early childhood programs, the following shall apply:

1. Diapering requirements for centers serving children who are not toilet trained are as follows:

i. Staff members shall ensure that:

(1) Each child's diaper is changed when wet or soiled;

(2) Each child's bottom is washed and dried during each diaper change with an individual disposable wash cloth, paper towel**,** or disposable diaper wipes; and

(3) The staff members' hands are washed after changing each diaper.

ii. Diapering area and surface requirements are as follows:

(1) Diapering shall not take place in an area or on a surface used for food preparation, service**,** or eating.

(2) The diapering area shall be within 15 feet of a sink that is not used for food preparation.

(3) The diapering surface shall be flat, smooth, clean, dry, non-absorbent, and in good repair.

iii. Diapering supply requirements are as follows:

(1) A supply of clean diapers shall always be available.

(2) Diapering supplies, including diapers, shall be stored in an area out of the children's reach but easily accessible to staff members during a diaper change.

(3) Equipment used for cleaning the diapering surface shall be restricted for use in this area only and shall be disposable or laundered in hot soapy water.

(4) Staff members who use disposable gloves during a diaper change shall dispose of these gloves after each use and shall wash their hands.

iv. Soiled diapers shall be disposed of as follows:

(1) Soiled disposable diapers shall be placed in a closed container that is lined with a leakproof or impervious lining. Such diapers shall be removed from the center daily and placed in a closed garbage receptacle outside the building.

(2) Soiled non-disposable diapers shall be placed in a sealed plastic container that has been labeled with the child's name. Such diapers shall be returned to the child's parent at the end of that day.

2. Clothing requirements are as follows:

i. A child's clothing shall be changed when wet or soiled.

ii. The center shall ensure that a change of clothing is provided for each child.

iii. Soiled clothes shall be:

(1) Placed in a sealed plastic container that has been labeled with the child's name and returned to the child's parent at the end of that day for laundering; or

(2) Laundered at the center in a washing machine.

iv. For clothing soiled with fecal matter, the stool shall be emptied into the toilet.

3A:52-7.9 Illness log for early childhood programs

(a) For early childhood programs, the following shall apply:

1. The center shall maintain on file a log of the initial illnesses, symptoms of illness**,** or diseases that are exhibited by each child while in the center’s care, as specified in N.J.A.C. 3A:52-7.1(c) and (d). This illness log shall include:

i. The child's name;

ii. The date and time the illness, symptoms of illness or diseases were observed at the center;

iii. A description of the symptoms of illness manifested by the child;

iv. The action taken by the center to assist:

(1) The child who is demonstrating symptoms of illness; and

(2) The director in determining if exclusion of the child from the center is necessary;

v. Any significant change in the child's symptoms of illness; and

vi. The date, if applicable, that:

(1) The child was removed from the center;

(2) The child returned to the center with a note from a health care provider attesting to the child's admissibility to the center and recovery from a reportable disease, as specified in N.J.A.C. 8:57;

(3) The child returned to the center with a parent's note attesting that six days have elapsed since the onset of chicken pox, or that all chicken pox sores have dried and crusted; or

(4) The child returned to the center symptom-free.

3A:52-7.10 Reporting of illnesses, injuries, and reportable diseases

(a) The director, sponsor, or sponsor representative, upon learning that an enrolled child or staff member at the center has been diagnosed as having contracted or is suspected of having a reportable disease, as specified in N.J.A.C. 3A:52-7.1(d), shall report this knowledge by the next working day to the local health department.

(b) The director, sponsor, or sponsor representative shall report the following occurrences to the Office of Licensing by the next working day after the center learns of the occurrence and shall submit documentation to the Office of Licensing within one week of the occurrence of the incident:

1. The occurrence of an injury or illness while under the center's supervision that results in a child visiting the emergency room;

2. The occurrence of an injury or illness while under the center's supervision that results in a child's admittance to the hospital;

3. The death of a child while under the center's supervision; or

4. The occurrence of an injury or illness that results in a call to 911, on-site medical or transported emergency care, or urgent care.

(c) The director, sponsor, or sponsor representative, having knowledge that a child has been injured by a dog, cat or other animal that is kept by or located at the center, and when no physician attends such child, shall, within 12 hours of the injury, report the name, age, sex, and address of the child to the local health department.

3A:52-7.11 Information to parents regarding the management of communicable diseases

(a) Each center shall develop a written policy on the management of communicable diseases. This policy shall include the following:

1. The list of illnesses and symptoms of illness for which a child will be separated from the group and possibly sent home, as specified in N.J.A.C. 3A:52-7.1(c);

2. The list of diseases for which a child will not be readmitted to the center unless accompanied by a statement from the child's health care provider, as specified in N.J.A.C. 3A:52-7.1(d); and

3. Assurance that during any outbreak of an excludable disease at the center, as specified in N.J.A.C. 3A:52-7.1(d), each parent whose child may have been exposed to the disease shall receive a written notice of the outbreak.

(b) The center shall distribute a copy of the policy on the management of communicable diseases to the parent of each child enrolled and secure and maintain on file a record of each parent's signature attesting to receipt of the policy.

(c) Centers serving children who are sick shall comply with the requirements for information to parents, as specified in N.J.A.C. 3A:52-8.5(b).

SUBCHAPTER 8. REQUIREMENTS FOR CENTERS SERVING SICK CHILDREN

3A:52-8.1 Requirements for all centers serving sick children

(a) The provisions of this subchapter shall apply to any center that chooses to serve the following:

1. Only children who have illnesses, symptoms of illness**,** or diseases, as specified in N.J.A.C. 3A:52-7.1(c) and (d); or

2. Some children who have illnesses, symptoms of illness**,** or diseases, as specified in N.J.A.C. 3A:52-7.1(c) and (d), as part of a sick child care component of a center primarily serving well children.

(b) A center as set forth in (a) above shall also comply with all applicable provisions of this chapter.

(c) The center shall maintain on file written policies and procedures governing its operation, including:

1. Those categories of illness for which the center will provide care;

2. The ages of children who will be served;

3. The center's infection control procedures;

4. The center's admission criteria, which shall include provisions for conducting either:

i. A medical evaluation of arriving children by a New Jersey licensed physician; or

ii. A physical assessment, known as a triage, of arriving children by a registered nurse;

(1) The triage shall include, as appropriate to the demonstrated symptoms, an assessment of the child's temperature, pulse, respiration, skin, eyes, nose, throat, mouth, chest, abdomen, and extremities;

5. A provision encouraging the parents, before bringing the child to the center, to call the center each day to:

i. Describe the child's illnesses, symptoms of illness**,** or diseases; and

ii. Determine if the center has an opening for the child;

6. For centers using a registered nurse as the admitting staff member, the physical assessment criteria that are used to determine:

i. Appropriateness of a child's attendance at the center on that day; or

ii. A child's need to be examined by a licensed physician, prior to being admitted to the center on that day;

7. The criteria and procedures for caring for or releasing children whose illnesses, symptoms of illness**,** or diseases have worsened;

8. Methods and frequency of identifying and recording symptomatic changes throughout the day;

9. The preparation, frequency**,** and serving of meals that are appropriate for the child's illnesses, symptoms of illness**,** or diseases; and

10. The center's policy on communicating with parents concerning the child's illnesses, symptoms of illness, or diseases.

(d) The center shall arrange for a New Jersey licensed physician to serve as its consulting physician, providing medical advice and assistance on an on-call basis.

(e) The center shall have a governing board or an advisory board, which shall oversee the development of and approve in writing its policies and procedures, as specified in (c) above. The governing or advisory board shall include at least two of the following licensed health professionals:

1. A physician licensed by the New Jersey Board of Medical Examiners;
2. A registered nurse licensed by the New Jersey State Board of Nursing; or
3. A local health official.

(f) The consulting physician shall approve in writing the policies and procedures specified in (c) above.

3A:52-8.2 Admission criteria

(a) The center shall not admit a sick child below three months of age unless the child has been seen and diagnosed by his or her health care provider who indicates in writing that the child can be admitted.

(b) The center shall require that a parent or an adult authorized by the parent accompany each child during admission to the center.

3A:52-8.3 Requirements for additional staff for centers serving sick children

(a) The staff requirements for centers serving sick children are as follows:

1. In addition to the staff members required in N.J.A.C. 3A:52-4.2, the center shall ensure that a physician licensed by the New Jersey Board of Medical Examiners or a registered nurse licensed by the New Jersey State Board of Nursing is at the center during the hours children are in attendance.

2. The staff member specified in (a)1 above may also serve as the head teacher, group teacher, or program supervisor where applicable, provided that:

i. The person meets the staff qualification requirements for such positions, based on the center size and type, as specified in N.J.A.C. 3A:52-4.6(c) and (d); or

ii. The person has two years of work experience with children of the age group being served.

3. In centers that primarily serve well children and provide sick care only as a component of the overall program, the physician or registered nurse, as specified in (a)1 above, shall be required to be at the center for at least 50 percent of the sick care component's daily operating hours, and shall be on call and available to come to the center immediately at all other times, provided that the following conditions are met:

i. The physician or registered nurse is present at all times when children are being admitted to the center;

ii. Sick care is provided only to children who are regularly enrolled in the center's program serving well children;

iii. No more than eight children are served in the sick care component at any one time;

iv. Children under six months of age are not admitted to the sick child care component at any time;

v. The physician or registered nurse assesses that no child will be placed at risk during the time when the physician or registered nurse is absent; and

vi. The on-call physician or nurse does not serve as the center's head teacher.

4. In centers specified in (a)3 above, the provisions specified in (a)3i through vii above need not be met if the physician or registered nurse remains at the center during all hours the children are in attendance.

(b) The responsibilities of the staff physician or registered nurse are as follows:

1. The physician or registered nurse, as specified in (a)1 above, shall be responsible for developing and implementing the center's medical program, including:

i. Conducting the daily admission assessment of each child, as specified in N.J.A.C. 3A:52-8.1(c)4;

ii. Maintaining records on each child, as specified in N.J.A.C. 3A:52-8.7(a); and

iii. Reviewing and administering medication, as specified in N.J.A.C. 3A:52-7.5(b), as applicable for each child.

(c) The following staff/child ratios shall apply:

Age of Child	Staff/Child Ratio
Birth up to 3 months of age	1:1
3 months up to 18 months of age	1:3
18 months up to 2 ½ years of age	1:5
2 ½ years of age and above	1:7

(d) Grouping of children shall be as follows:

1. The center shall group children according to the illnesses categorized below:

i. Upper-respiratory;

ii. Gastro-intestinal;

iii. Chicken pox; and

iv. Any other illness that has been included in the center's admission policy.

(e) Additional staff training shall be provided as follows:

1. The center shall provide training for each new staff member upon beginning work at the center and for all staff members annually.

2. Such training shall include:

i. Basic knowledge of first aid principles;

ii. Recognizing the symptoms of illness;

iii. Feeding sick children;

iv. When and how to call for medical advice;

v. Taking children's temperatures;

vi. Any other care that may be required for admissible illnesses and conditions;

vii. Infection control;

viii. Review of center policies and procedures;

ix. Child development, including activities for children who are sick; and

x. Communicating with parents concerning a child's illness.

3A:52-8.4 Requirements for additional physical facilities for centers serving sick children

(a) There shall be a minimum of 50 square feet of net indoor floor space for each child.

(b) An individual room or a specific area within a large room, which is separated from other areas of the room by a partition or room divider, shall be available to separate and prevent contact between children who have different illnesses, symptoms of illness**,** or diseases.

(c) Centers whose policies allow for the care of children who have chicken pox or other illnesses that require isolation shall provide an isolation room for these children. Each isolation room shall have the following:

1. Continuous barriers that are floor to ceiling in height; and
2. Its own toilet facility, unless children using the isolation room can reach and use another toilet facility without coming into contact with other children.

(d) The center shall provide soap for handwashing from a liquid soap dispenser.

(e) Centers that serve only sick children shall not be required to have the following:

1. An outdoor space for the children's physical activities or its equivalent, as specified in N.J.A.C. 3A:52-5.4(a)7; and
2. A room or area in a separate section of the center for children who become ill, as specified in N.J.A.C. 3A:52- 5.3(q)4.

(f) Centers that have a sick child care component, as specified in N.J.A.C. 3A:52-8.1(a)2, shall use separate play rooms and areas and separate toilet facilities for sick and well children.

3A:52-8.5 Program requirements for centers serving sick children

(a) The center shall develop and provide a variety of children's planned daily activities that are appropriate for the needs and the condition of children who are sick.

(b) The center shall make available to parents of prospective enrollees information in writing on the center's program, including:

1. Illnesses, symptoms of illness**,** or diseases for which the center will provide care;
2. The center's admission criteria; and
3. The center's daily admitting procedures.

3A:52-8.6 Sanitation and infection control

(a) The center shall ensure that all washable items of play equipment, supplies**,** and toys that one group of sick children, as specified in N.J.A.C. 3A:52-8.3(d), have contacted are washed with soap and water and disinfected before allowing them to be used by another group of sick children.

(b) The center shall ensure that all personal items belonging to a child are returned to the parent each day.

3A:52-8.7 Requirements for additional records for centers serving sick children

(a) The center shall maintain on file the following additional records:

1. Admission assessment information on each child, as specified in N.J.A.C. 3A:52-8.1(c)4;

2. The written policies and procedures developed by the center, as specified in N.J.A.C. 3A:52-8.1(c);

3. The written approval of policies and procedures by the center's governing board or advisory board and by the consulting physician, as specified in N.J.A.C. 3A:52-8.1(e) and (f);

4. Documentation of the training provided to all staff members, as specified in N.J.A.C. 3A:52-8.3(e); and

5. The Information to Parents document, as specified in N.J.A.C. 3A:52-8.5(b).

SUBCHAPTER 9. TRANSPORTATION REQUIREMENTS

3A:52-9.1 Scope

(a) The provisions of this subchapter shall apply to:

1. Each center that provides or arranges for the provision of transportation for children:

i. To or from their homes or other prearranged sites and the center; or

ii. In connection with an activity (such as a field trip) conducted by or through the auspices of the center; and

2. Each person or agency other than the center that provides or arranges for the provision of transportation for children to or from their homes and a center.

(b) Each center, person**,** or agency, as defined in (a) above, also shall comply with applicable provisions of New Jersey Motor Vehicle Commission (MVC) law, pursuant to N.J.S.A. 39:1-1 et seq., and the rules promulgated thereunder, as specified in N.J.A.C. 13.

3A:52-9.2 Vehicle definitions

(a) A Type I School Bus means a bus with a capacity of 17 to 54 passengers, as indicated by the vehicle manufacturer, which has been painted in the color of uniform national school bus yellow, and is required by the Motor Vehicle Commission (MVC) to have New Jersey school vehicle Type I, "S1" designated license plates.

(b) A Type II School Bus means a bus with a capacity of 10 to 16 passengers, as indicated by the vehicle manufacturer, which has been painted in the color of uniform national school bus yellow if the bus was manufactured after April 1, 1977, and is required by the MVC to have New Jersey school vehicle Type II, "S2" designated license plates.

(c) A Type S School Vehicle means a vehicle with a capacity of nine or fewer passengers, as indicated by the vehicle manufacturer, and a gross vehicle weight rating of 3,000 pounds or more, which is required by the MVC to have New Jersey school vehicle Type II, "S2" designated license plates.

3A:52-9.3 Vehicle requirements

(a) The center shall ensure that each vehicle used to provide transportation of enrolled children to and from the center, as specified in N.J.A.C. 3A:52-9.1(a), except private passenger vehicles, is equipped with the following:

1. Three triangular portable red reflector warning devices;

2. A fully charged fire extinguisher, with a gauge and with a minimum underwriters' rating of 2A 10BC, which shall be located at the front and securely mounted to the right of the driver in a way that does not constitute an obstruction or hazard to the passengers;

3. A seat belt cutter;

4. A removable first-aid kit located in an accessible place within the vehicle; and

5. Forward-facing seats, excluding folding seats and jump seats. Each seat exit shall be clear of obstructions.

(b) The center shall ensure that each Type I School Bus has school vehicle Type I, "S1" designated license plates and a valid School Bus inspection sticker issued by the Motor Vehicle Commission (MVC).

(c) The center shall ensure that each Type II School Bus has school vehicle Type II, "S2" designated license plates and a valid School Bus inspection sticker issued by the MVC;

(d) The center shall ensure that each Type S School Vehicle:

1. Has school vehicle Type II, "S2" designated license plates and a valid School Bus inspection sticker issued by the MVC;

2. Is equipped with a spare tire and a jack; and

3. Meets the requirements specified by the MVC.

(e) The center shall use a Type I School Bus, Type II School Bus or Type S School Vehicle at all times when transporting children, except as specified in (f) and (g) below.

(f) Any center may authorize staff members or parents of enrolled children to utilize their own private passenger vehicles to transport children from the center to and from scheduled center field trips, outings**,** or special events (such as visits to the zoo, library, or museum) or to transport children from the center to a hospital, clinic**,** or office for medical treatment, pursuant to N.J.S.A. 18A:39-20.1. However, staff members and parents may be authorized to do so only if:

1. The vehicle has a capacity of nine or fewer persons;

2. The driver possesses a valid Basic automobile driver's license issued by the MVC or a valid automobile driver's license issued by an approved out-of-State motor vehicle agency for the state in which the driver is a legal resident;

3. The vehicle has a valid motor vehicle inspection sticker issued by the MVC or by an approved out-of-State motor vehicle agency for the state in which the vehicle is legally registered;

4. The vehicle owner possesses vehicle liability insurance at least at the minimum amounts required by New Jersey State insurance law, pursuant to N.J.S.A. 17:28-1.1a, or at least at the minimum amounts required by a state other than New Jersey in which the vehicle is legally registered;

5. The center maintains transportation records on each vehicle, as specified in N.J.A.C. 3A:52-9.7(b); and

6. The center ensures that the driver and additional adults apply the safety practices, as specified in N.J.A.C. 3A:52-9.5(a) through (d) and (g) through (m).

(g) For school-age child care programs, the center may use an autobus under the jurisdiction of the Department of Transportation when chartered for scheduled center field trips, outings**,** or special events, provided that the driver and each additional adult apply the safety practices, as specified in N.J.A.C. 3A:52-9.5(a) through (e), (h), and (j) through (m).

(h) A center that provides or arranges transportation for physically disabled non-ambulatory children shall meet the additional vehicle requirements specified by the MVC.

3A:52-9.4 Driver licensing requirements

(a) If a center uses a Type I School Bus, Type II School Bus, or Type S School Vehicle, the center shall:

1. Meet all applicable rules of the Motor Vehicle Commission (MVC), Department of Education, and Department of Children and Families;

2. Ensure that each driver of such a vehicle possesses a valid Commercial Driver License (CDL) in at least Class B or Class C, with a passenger endorsement, as required by the MVC for the gross vehicle weight rating (GVWR) of the vehicle, or an out-of-State equivalent license, as approved by the MVC; and

3. Submit a list of all drivers to the MVC when the vehicle is inspected by the MVC.

3A:52-9.5 Vehicle-related safety practices

(a) Children shall never be left unattended in a vehicle.

(b) Children shall be accepted and discharged from the curbside of the vehicle.

(c) The interior and exterior of each vehicle shall be maintained in clean and safe condition, with clear passage to operable doors.

(d) All vehicles that are utilized to transport children shall be equipped with car seats (child passenger restraint systems) and booster seats that meet Federal motor vehicle safety standards, as appropriate for the age and weight of the children transported, in accordance with applicable provisions of Motor Vehicle Commission (MVC) law, pursuant to N.J.S.A. 39:3-76.2a and f or 39:3B-10 and 11, as applicable.

(e) The driver shall not transport more persons, including children and adults, than:

1. The occupancy of the Type I School Bus, as indicated by the vehicle manufacturer; or

2. The occupancy of the Type II School Bus, Type S School Vehicle, or other approved vehicle, as determined by the number of operable seat belts.

(f) The driver and each additional adult on the Type I School Bus shall ensure that:

1. All passengers are seated and remain seated when the bus is in motion; and

2. All passengers below 18 months of age are secured in the proper restraint system, as specified in (d) above, when the bus is in motion.

(g) The driver and each additional adult(s) on the Type II School Bus, Type S School Vehicle, and private passenger vehicle shall ensure that:

1. All passengers are seated and remain seated when the vehicle is in motion; and

2. Each child is secured in an operable seat belt or proper restraint system or booster seat, if applicable as specified in (e) above, when the vehicle is in motion.

(h) There shall be no standees in any vehicle transporting children.

(i) The center shall conduct two emergency evacuation drills each year for passengers who ride the Type I or Type II School Bus.

(j) The driver shall conduct a daily check of the vehicle, which shall include all safety equipment, to ensure that the vehicle is in sound operating condition.

(k) The driver shall conduct a check of the vehicle, after each run is completed, to ensure that no child has been left in the vehicle.

(*l*) Smoking shall be prohibited in all vehicles when occupied by children.

(m) For children below six years of age, the driver or additional adult(s) shall ensure that each child discharged from the vehicle is received by his or her parent or person designated by a child's parent.

(n) Children shall not remain in any vehicle for more than one hour at any given time on a daily basis.

3A:52-9.6 Vehicle insurance

(a) Each center or person providing transportation services, as specified in N.J.A.C. 3A:52-9.1(a), shall:

1. Secure and maintain vehicle liability insurance for bodily injury or death in minimum amounts as specified in N.J.A.C. 13:20-49H.1;
2. Maintain on file at the center a copy of the insurance policy or documentation of current insurance coverage; and
3. Submit the insurance certificate to the Motor Vehicle Commission.

3A:52-9.7 Transportation records

(a) When the center transports children in a vehicle other than a private passenger vehicle, as specified in N.J.A.C. 3A:52-9.3(f), or a chartered autobus, as specified in N.J.A.C. 3A:52-9.3(g), the center shall maintain on file:

1. A record of each child transported;
2. The name and address of each driver;
3. A photostatic copy of each driver’s valid driver’s license; and
4. The year, make and model of each vehicle used by the center to transport children.

(b) For center-authorized drivers providing periodic transportation in private passenger vehicles, the center shall maintain on file a checklist indicating that the provisions specified in N.J.A.C. 3A:52-9.3(f) have been met.

(c) The center shall maintain on file the names and addresses of the person(s) designated as the additional adult(s) and the license numbers of the school bus(es) or vehicle(s) to which they are assigned.

(d) The center shall maintain on file inspection and maintenance records for each vehicle, other than a private passenger vehicle or chartered autobus, used by the center to transport children. The center shall:

1. Ensure that each Type I School Bus, Type II School Bus**,** and Type S School Vehicle is inspected by the Motor Vehicle Commission twice a year;

2. Ensure that the inspection and maintenance records for each vehicle meet the requirements specified in N.J.A.C. 13:20-30.3; and

3. For vehicles that have been leased or otherwise contracted for, maintain on file the name and address of the leaser or contractor furnishing the vehicle.

(e) The records specified in (d) above shall be retained in the center's files for the life of the vehicle.

(f) Documentation of emergency evacuation drills for all passengers who ride the Type I or Type II School Bus shall be maintained in a log containing the following information:

1. The date of the drill;
2. The number of passengers;
3. The time taken to evacuate the bus; and
4. The signature of the person conducting the drill.

(g) If transportation services are provided by the center, or by a firm under contract to or other arrangement with the center, the center shall maintain on file a copy of its own vehicle liability insurance, or of that firm's name and vehicle liability insurance coverage in the amount(s) specified in N.J.A.C. 3A:52-9.6.

(h) The center shall obtain written authorization from the parent or guardian before transporting a child to or from the center.

3A:52-9.8 Vehicle staff requirements

(a) When one or more children are being transported, there shall be one adult in addition to the driver who remains in the vehicle when it is in motion, and who remains within sight of the vehicle when it has stopped to accept or discharge children, from the time the first child is picked up until the last child has reached his or her destination.

(b) When 13 or more children who are below 2 ½ years of age are being transported, there shall be two adults in addition to the driver who remain in the vehicle when it is in motion, and who remain within sight of the vehicle when it has stopped to accept or discharge children, until fewer than 13 children remain, at which time one adult in addition to the driver shall remain until the last child has reached his or her destination.

(c) The center shall have a written policy and procedures to ensure the safe transportation of children, including, but not limited to, ensuring that children are secured in appropriate restraints. The center shall train each regularly-scheduled driver and additional adult as referred to in (a) and (b) above on this policy prior to starting his or her position.

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